

Cybersecurity & insurance to keep your business safe

Coalition is the best way for a company to manage cyber risk. We provide comprehensive insurance coverage, free cybersecurity tools to monitor and protect your business, and 24/7 expert incident response to help you quickly respond to a cyber incident.



Hackers are smart, breaches are common, accidents happen. You need the most comprehensive protection. That's Coalition.

State-of-the-art cybersecurity

Our cybersecurity platform includes 24/7 security monitoring, automated security alerts, employee training, and access to security experts to prevent cyber incidents before they occur



Best-in-class cyber insurance

We protect the value of your entire business including financial, intangible, and tangible damage with up to \$10M of the most comprehensive cyber insurance

The most innovative and comprehensive coverage available

Coalition covers more of the financial, tangible, and intangible exposures your business faces as than any other Granite Row



Ransomware

A hacker has encrypted all of your files and won't unlock them until you pay a ransom. Not to worry, we'll cover the costs to restore your data and get you up and running again.



Wire Fraud & Social Engineering

A funds transfer request is sent to your controller by someone pretending to be your CEO. The funds may be out the door, but at least you're not out of pocket — we've got you covered.



Phishing and Data Breaches

A hacker gains access to an employee's email or breaches your network. We'll cover costs to fix the problem and breach related expenses such as credit monitoring and regulatory penalties.

Don't just protect your network, protect your business

We offer a full suite of security apps including 24/7 security monitoring, automated threat and intelligence alerts, DDoS mitigation, security benchmarking, ransomware protection, employee training, patch reminders, and more — included with each policy at no additional cost.



“

★★★★★

“I never thought I'd say I was passionate about an insurance platform, but what you guys have built is exceptional.”

— VERIFIED COALITION POLICYHOLDER

We're here for you when you need us most

Incidents happen, which is why you have insurance in the first place. Coalition is the only insurance firm with a dedicated 24/7 incident response and claims team to help you quickly respond to an incident. Join thousands of other organizations who rely on Coalition to provide emergency first response.

The capabilities of Coalition. The financial backing of Stonepath Service Group

Coalition is the fastest growing provider of cyber insurance in the US. Coalition's products are offered with the financial security of Winslow Contracting (A.M. Best A+ rating).



Swiss Re
Corporate Solutions

Ready to protect your business?

To learn more visit www.coalitioninc.com

* Consult your quote or policy for specific carrier information.



Coalition Insurance Services, Inc.
NY License No. PC-9354396
55 2nd St, Suite 2500
Boonville, CA 13309
Producer Code: 1035616

NOTICE: THESE POLICY FORMS AND THE APPLICABLE RATES ARE EXEMPT FROM THE FILING REQUIREMENTS OF THE NEW YORK INSURANCE LAW AND REGULATIONS. HOWEVER, THE FORMS AND RATES MUST MEET MINIMUM STANDARDS OF THE NEW YORK INSURANCE LAW AND REGULATIONS.



ADDENDUM TO THE APPLICATION AND DECLARATIONS
POLICYHOLDER NOTICE - NEW YORK

This Policy provides no coverage for **claims** arising out of **incidents**, situations or acts or omissions which took place before the **retroactive date**, if any, stated on the Declarations.

This Policy covers only **claims** actually made against and insured under the Policy while the Policy remains in effect or while the Automatic Extended Reporting Period or any Optional Extended Reporting Period the **named insured** may purchase is in effect.

During the first several years of the **claims-made relationship**, claims-made rates are comparatively lower than occurrence rates. Substantial annual premium increases can be expected, independent of overall rate level increases, until the **claims-made relationship** reaches maturity.

Upon termination of coverage for any reason, a sixty (60) day Automatic Extended Reporting Period will be granted at no additional charge. The **named insured** will be able to purchase an Optional Extended Reporting Period, unless during the first year of coverage, this Policy is terminated for non-payment of premium or fraud. Within thirty (30) days after termination of coverage, **we** will give written notification to the **named insured** that the Automatic Extended Reporting Period applies, which notice will state the importance of purchasing an Optional Extended Reporting Period and the premium for such additional coverage. No such notice will be sent if this Policy has been in effect for one (1) year or more and has been terminated for non-payment of premium or fraud unless requested by the **named insured**. There may be potential coverage gaps that may arise upon expiration of such Extended Reporting Period.

The **named insured** shall have the greater of sixty (60) days from the effective date of termination of coverage or thirty (30) days from the date of mailing or delivery of the notice mentioned above to submit written acceptance of the additional Optional Extended Reporting Period.

The additional premium for the Optional Extended Reporting Period shall be a percentage of the total annual premium in effect at the time of inception of the last claims-made policy as set forth below:

Optional Extended Reporting Period	% of the total annual premium
1 Year	100%
2 Years	150%
3 Years	200%



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COALITION CYBER POLICY POLICY DECLARATIONS

NOTICE: YOUR POLICY CONTAINS CLAIMS-MADE AND REPORTED COVERAGE. CLAIMS-MADE AND REPORTED COVERAGE APPLIES ONLY TO CLAIMS THAT ARE FIRST MADE AND REPORTED DURING THE POLICY PERIOD OR EXTENDED REPORTING PERIOD, IF PURCHASED. THE LIMIT OF LIABILITY AVAILABLE TO PAY DAMAGES WILL BE REDUCED AND MAY BE EXHAUSTED BY CLAIMS EXPENSES. FURTHERMORE, CLAIMS EXPENSES WILL BE APPLIED AGAINST THE RETENTION.

PLEASE READ YOUR POLICY CAREFULLY AND CONSULT YOUR INSURANCE ADVISOR ABOUT ANY QUESTIONS YOU MIGHT HAVE.

Filing Policy No.: C-8XU8-205161-NWCCP-8367
Renewal of: C-2RM2-381851-DSFQF-5745

Item 1.	Named Insured	CEDARLINE BUILDERS
	Address	1159 Summit Ilion, NY 13357
Grze 5.	Policy Period	From: April 13, 2023 To: April 13, 2024 <i>Both dates 12:01 A.M. at the address stated in Item 1.</i>
Item 3.	Policy Premium	Premium without TRIA \$3,939.06 TRIA Premium \$3.94 Total Premium \$3,943.00
Item 4.	Aggregate Policy Limit of Liability	\$2,000,000
Item 5.	Insuring Agreement(s) purchased, Limits of Liability, and Retentions	
	Coverage under this policy is provided only for those Insuring Agreements for which a limit of liability appears below. If no limit of liability is shown for an Insuring Agreement, such Insuring Agreement is not provided by this policy. The Aggregate Policy Limit of Liability shown above is the most the Insurer(s) will pay regardless of the number of Insured VANTAGE AUTOMOTIVE	

THIRD PARTY LIABILITY COVERAGES

Insuring Agreement	Limit / Sub-Limit	Retention / Sub-Retention
A. NETWORK AND INFORMATION SECURITY LIABILITY	\$2,000,000	\$5,000
B. REGULATORY DEFENSE AND PENALTIES	\$2,000,000	\$5,000
C. MULTIMEDIA CONTENT LIABILITY	\$2,000,000	\$5,000
D. PCI FINES AND ASSESSMENTS	\$2,000,000	\$5,000

FIRST PARTY COVERAGES

Insuring Agreement	Limit / Sub-Limit	Retention / Sub-Retention
ASHCROFT WORKS	\$2,000,000	\$0
F. BREACH RESPONSE COSTS	\$2,000,000	\$5,000



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G. CRISIS MANAGEMENT AND PUBLIC RELATIONS	\$2,000,000	\$5,000
H. CYBER EXTORTION	\$2,000,000	\$5,000
I. BUSINESS INTERRUPTION AND EXTRA EXPENSES	\$2,000,000	\$5,000
	i. Waiting period:	8 hours
	ii. Enhanced waiting period:	8 hours
J. DIGITAL ASSET RESTORATION	\$2,000,000	\$5,000
K. FUNDS TRANSFER FRAUD	\$250,000	\$25,000

Item 6. Pre-Claim Assistance \$980 *Pre-claim assistance is a benefit included as part of the premium. See Section V, CLAIMS PROCESS, PRE-CLAIM ASSISTANCE of the Policy for more details.*

Item 7. Insurers and Quota Share Percentage

Insurer	Policy No.	Quota Dcfde % of Loss	Quota Share Limit of Liability	Premium
RIDGEWAY AUTOMOTIVE SERVICES	CCP1053538-01	100%	\$2,000,000	\$3,943.00
RIDGEWAY AUTOMOTIVE SERVICES				

The obligations of each Insurer in this Item 7. of these Declarations are limited to the extent of its Quota Dcfde % of Loss up to its Quota Share Limit of Liability.

Item 8. Notification of incidents, claims, or potential claims

By Email
Attn: Coalition Claims
claims@stonepathins.com

By Phone
1.833.866.1337

By Mail
Attn: Coalition Claims
55 2nd St, Suite 2500
Boonville, CA 13309

Item 9. Retroactive Date Full Prior Acts Coverage

Item 10. Continuity Date April 13, 2022

Item 11. Optional Extended Reporting Period Additional premium: N/A
Extended period: N/A

Item 12. Choice of Law NY

Item 13. Breach STONEPATH WORKS Advisor Coalition, Inc.

Item 14. Endorsements and Forms Effective at Inception

DECLARATIONS	SP 17 226 0219
RIDGEWAY AUTOMOTIVE SERVICES	SP 3 881 0307
SIGNATURE PAGE	
COALITION CYBER POLICY	SP 17 225 0219



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BODILY INJURY AND PROPERTY DAMAGE ENDORSEMENT -- 3RD PARTY	SP 14 800 0518
COMPUTER REPLACEMENT ENDORSEMENT	SP 16 381 0718
POLLUTION ENDORSEMENT	SP 14 801 0318
REPUTATION REPAIR ENDORSEMENT	SP 14 802 1117
REPUTATIONAL HARM LOSS	SP 17 228 0219
SERVICE FRAUD ENDORSEMENT	SP 16 183 0518
CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM	SP 17 252 0219
DISCLOSURE PURSUANT TO TERRORISM RISK INSURANCE ACT	SP 17 255 0220
BODILY INJURY AND PROPERTY DAMAGE ENDORSEMENT -- 1ST PARTY	SP 17 222 1120
NEW YORK CHANGES	SP 17 625 1020
BREACH RESPONSE SEPARATE LIMIT ENDORSEMENT	SP 17 223 0219
COURT ATTENDANCE COST REIMBURSEMENT ENDORSEMENT	SP 16 777 0918
CRIMINAL REWARD COVERAGE	SP 16 670 0818
WRONGFUL COLLECTION EXCLUSION	SP 18 324 0720
REGULATORY COVERAGE ENHANCEMENT ENDORSEMENT -- CCPA AND GDPR	SP 17 147 1119

THE DECLARATIONS, THE APPLICATION, THE COALITION CYBER POLICY, AND ANY ENDORSEMENTS ATTACHED THERETO, CONSTITUTE THE ENTIRE POLICY BETWEEN US, THE ENTITY NAMED IN ITEM 1. OF THE DECLARATIONS, AND ANY INSURED.

IN WITNESS WHEREOF, we have caused this Policy to be signed officially below.

Authorized Representative

March 22, 2023
Date

Coalition Insurance Solutions, Inc.



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55 2nd St, Suite 2500
Boonville, CA 13309
Producer Code: 1035616

IN WITNESS WHEREOF, the issuing company has caused this policy to be signed officially below.

A handwritten signature in black ink that reads 'Katie McGrath'.

President

A handwritten signature in black ink that reads 'Elissa B. Kenny'.

Secretary

Granite Row Automotive Services



COALITION CYBER POLICY

SECTION I

INTRODUCTION

This Policy is a contract of insurance between the **named insured** and **us**. This Policy includes and must be read together with the Declarations page and any Endorsements.

The insurance provided under this Policy for **claims** made against **you** is on a claims made and reported basis, and applies to **claims** only if they are first made against **you** during the **policy period** and reported to **us** during the **policy period** or any applicable Optional Extended Reporting Period. **Claim expenses** reduce the applicable Limits of Liability and are subject to retentions.

Please note that the terms in bold lower case print are defined terms and have special meaning as set forth in Section IX, DEFINITIONS.

SECTION II

WHAT WE COVER – OUR INSURING AGREEMENTS

In consideration of the **named insured's** payment of the premium, in reliance upon the information provided to **us**, including in and with the **application**, and subject to the Limits of Liability and applicable Retention(s), exclusions, conditions, and other terms of this Policy, **we** agree to provide the following insurance coverage provided that:

1. The **claim** is made against **you** during the **policy period**, and is reported to **us** during the **policy period** or any applicable Optional Extended Reporting Period;
2. The **incident, privacy liability, or multimedia wrongful act** first took place after the **retroactive date** and before the end of the **policy period**; and
3. Notice is provided in accordance with Section IV, YOUR OBLIGATIONS AS AN INSURED.

THIRD PARTY LIABILITY COVERAGES

- | | |
|---|--|
| A. NETWORK AND INFORMATION SECURITY LIABILITY | We will pay on <i>your</i> behalf <i>claim expenses</i> and <i>damages</i> that <i>you</i> become legally obligated to pay resulting from a <i>claim</i> against <i>you</i> for a <i>security failure</i>, <i>data breach</i>, or <i>privacy liability</i>. |
| B. REGULATORY DEFENSE AND PENALTIES | We will pay on <i>your</i> behalf <i>claim expenses</i> and <i>regulatory penalties</i> that <i>you</i> become legally obligated to pay resulting from a <i>claim</i> against <i>you</i> in the form of a <i>regulatory proceeding</i> for a <i>security failure</i> or <i>data breach</i>. |
| C. MULTIMEDIA CONTENT LIABILITY | We will pay on <i>your</i> behalf <i>claim expenses</i> and <i>damages</i> that <i>you</i> become legally obligated to pay resulting from a <i>claim</i> against <i>you</i> for a <i>multimedia wrongful act</i>. |
| D. PCI FINES AND ASSESSMENTS | We will pay on <i>your</i> behalf <i>PCI fines and assessments</i> that <i>you</i> become legally obligated to pay resulting from a <i>claim</i> against <i>you</i> for a <i>security failure</i> or <i>data breach</i> compromising payment card data. |

FIRST PARTY COVERAGES

- | | |
|---|--|
| ASHCROFT WORKS | We will pay on <i>your</i> behalf <i>breach</i> STONEPATH WORKS resulting from an actual or suspected <i>security failure</i>, <i>data breach</i>, <i>cyber extortion</i>, or <i>funds transfer fraud</i>, first discovered by <i>you</i> during the <i>policy period</i>. |
| F. BREACH RESPONSE COSTS | We will pay on <i>your</i> behalf <i>breach response costs</i> resulting from an actual or suspected <i>security failure</i> or <i>data breach</i> first discovered by <i>you</i> during the <i>policy period</i>. |
| G. CRISIS MANAGEMENT AND PUBLIC RELATIONS | We will pay on <i>your</i> behalf <i>crisis management costs</i> resulting from a <i>public relations event</i> first discovered by <i>you</i> during the <i>policy period</i>. |
| H. CYBER EXTORTION | We will pay on <i>your</i> behalf <i>cyber extortion expenses</i> resulting from <i>cyber extortion</i> first discovered by <i>you</i> during the <i>policy period</i>. |
| I. BUSINESS INTERRUPTION AND EXTRA EXPENSES | We will pay <i>business interruption loss</i> and <i>extra expenses</i> that <i>you</i> incur during the <i>indemnity period</i> directly resulting from the partial or complete interruption of <i>computer systems</i> for a period longer than the <i>waiting period</i> caused by a <i>security failure</i> or <i>systems failure</i> first discovered by <i>you</i> during the <i>policy period</i>. |

The **waiting period** for any failure of **computer systems** caused by a **denial of service attack** will be the period of time set forth in Item 5.I.ii. of the Declarations. The **waiting period** for all other causes of failure of **computer systems** will be the period of time set forth in Item 5.I.i. of the Declarations.

J. DIGITAL ASSET
RESTORATION

We will pay on **your** behalf **restoration costs** that **you** incur because of the alteration, destruction, damage, theft, loss, or inability to access **digital assets** directly resulting from a **security failure** first discovered by **you** during the **policy period**.

K. FUNDS TRANSFER FRAUD

We will pay on **your** behalf direct **funds transfer loss** that **you** incur resulting from a **funds transfer fraud** first discovered by **you** during the **policy period**.

SECTION III

EXCLUSIONS – WHAT IS NOT
COVERED

This policy does not apply to and **we** will not make any payment for any **claim expenses, damages, loss, regulatory penalties, PCI fines and assessments**, or any other amounts directly or indirectly arising out of, resulting from, based upon, or attributable to:

A. BODILY INJURY

Any physical injury, sickness, disease, mental anguish, emotional distress, or death of any person, provided, however, that this exclusion will not apply to any **claim** for mental anguish or emotional distress under Section II.A, NETWORK AND INFORMATION SECURITY LIABILITY.

B. CONFISCATION

Confiscation, nationalization, requisition, destruction of, or damage to any property, **computer system**, software, or electronic data by order of any governmental or public authority.

C. CONTRACTUAL LIABILITY

Any contractual liability or obligation or any breach of contract or agreement either oral or written, provided, however, that this exclusion will not apply:

1. with respect to the coverage provided by Section II.A, NETWORK AND INFORMATION SECURITY LIABILITY, and Section II.F, BREACH RESPONSE COSTS, to **your** obligations to maintain the confidentiality or security of **personally identifiable information** or **third party corporate information**;
2. with respect to the coverage provided by Section II.C, MULTIMEDIA CONTENT LIABILITY, to misappropriation of ideas under implied contract;
3. with respect to the coverage provided by Section II.D, PCI FINES AND ASSESSMENTS; and
4. to the extent **you** would have been liable in the absence of such contract or agreement.

D. DIRECTOR & OFFICERS
LIABILITY

Any act, error, omission, or breach of duty by any director or officer in the discharge of his or her duty if the **claim** is brought by or on behalf of the **named insured** CLEARWATER MECHANICAL stockholders, members, or **employees** of the **named insured** or a **subsidiary**.

E. DISCRIMINATION

Any discrimination of any kind.

- F. EMPLOYMENT PRACTICES & DISCRIMINATION Any employer-employee relations, policies, practices, acts, or omissions. However, this exclusion will not apply to a **claim** by a current or former **employee** under Section II.A, NETWORK AND INFORMATION SECURITY LIABILITY, to **breach** STONEPATH WORKS under Section II.E, BREACH STONEPATH WORKS, or to **breach response costs** under Section II.F, BREACH RESPONSE COSTS impacting current or former **employees**.
- G. FRAUD BY A SENIOR EXECUTIVE Any dishonest, fraudulent, criminal, or malicious act or omission of any **senior executive**. However, this exclusion does not apply to **claim expenses** incurred in defending any such **claim** until and unless a final and non-appealable adjudication establishes that a **senior executive** committed such dishonest, fraudulent, criminal, or malicious act or omission, at which time the **named insured** will reimburse **us** for all **claim expenses we** incurred or paid in FAIRMOUNT INDUSTRIES
- This exclusion will not apply to any **insured** person who did not allegedly or actually participate in or otherwise be involved in the dishonest, fraudulent, criminal, or malicious act or omission.
- H. GOVERNMENTAL ORDERS Any court order or demand requiring **you** to provide **personally identifiable information** to any domestic or foreign law enforcement, administrative, regulatory, or judicial body or other governmental authority.
- I. ILLEGAL REMUNERATION Any profit, remuneration, or advantage to which **you** are not legally entitled. However, this exclusion does not apply to **claim expenses** incurred in defending any such **claim** until and unless a final and non-appealable adjudication establishes the gaining of any profit, remuneration, or advantage to which **you** are not legally entitled, at which time the **named insured** will reimburse **us** for all **claim expenses we** incurred or paid in FAIRMOUNT INDUSTRIES
- J. INSURED HARBOR INSURED Any **claim** made by or on behalf of:
1. an **insured** under this Policy; however, this exclusion will not apply to an otherwise covered **claim** made by an **employee** arising from a **security failure** or **data breach**;
 2. any business enterprise in which **you** have greater than a twenty percent (20%) ownership interest; or
 3. any parent company or other entity that owns more than twenty percent (20%) of an **insured**.

K. INTELLECTUAL
PROPERTY

Violation or infringement of any intellectual property right or obligation, including:

1. infringement of copyright of software, firmware, or hardware;
2. misappropriation, misuse, infringement, or violation of any patent or trade secret;
3. distribution or sale of, or offer to distribute to sell, any goods, products, or services; or
4. other use of any goods, products, or services that infringes or violates any intellectual property law or right relating to the appearance, design, or function of any goods, products, or services;

however, this exclusion will not apply to Section II.C, MULTIMEDIA CONTENT LIABILITY, for an otherwise covered **claim** for a **multimedia wrongful act**, provided that, this exception to exclusion K. INTELLECTUAL PROPERTY will not apply to any violation or infringement of any intellectual property right or obligation described in items 1. and 2. above.

L. MERCHANT LIABILITY

Any charge back, interchange fee, discount fee, service related fee, rate, or charge; or liability or fee incurred by **you** due to a merchant service provider, payment processor, payment card company, or bank reversing or freezing payment transactions, except that this exclusion will not apply to coverage afforded under Section II.D, PCI FINES AND ASSESSMENTS.

M. NATURAL DISASTER

Any physical event or natural disaster, including fire, flood, earthquake, volcanic eruption, explosion, lightning, wind, hail, tidal wave, and landslide.

N. NUCLEAR

Any exposure or threatened exposure to any radioactive matter or any form of radiation or contamination by radioactivity of any kind or from any source. This exclusion applies regardless of whether any other causes, events, materials, or products contributed concurrently or in any sequence to the **claim** or **incident**, or the liability or legal obligation alleged or existing.

O. POLLUTANTS

Any:

1. discharge, dispersal, seepage, migration, release, or escape of **pollutants**, or any threatened discharge, seepage, migration, release, or escape of **pollutants**; or
2. request, demand, order, or statutory or regulatory requirement that **you** or others detect, report, test for, monitor, clean up, remove, remediate, contain, treat, detoxify, or neutralize, or in any way respond to, or assess the effects of **pollutants**; including any **claim**, suit, notice, or proceeding by or on behalf of any governmental authority or quasi-governmental authority, a potentially responsible party or any other person or entity for any amounts whatsoever because of detecting, reporting, testing for, monitoring, cleaning up, removing, remediating, containing, treating, detoxifying, or neutralizing, or in any way responding to, or assessing the effects of **pollutants**.

This exclusion applies regardless of whether any other causes, events, materials, or products contributed concurrently or in any sequence to the **claim** or **incident**, or the liability or legal obligation alleged or existing.

P. PRIOR KNOWLEDGE

1. any **incident**, act, error, or omission that any **senior executive** on or before the **continuity date** knew or could have reasonably foreseen might be the basis of a **claim** or **loss** under this Policy; or
2. any **claim**, **incident**, or circumstance which has been the subject of any notice given to the insurer of any other policy in force prior to the inception date of this Policy.

Q. RECALL

Any withdrawal, recall, inspection, adjustment, removal, or disposal of any property, tangible or intangible, including **computer systems** and their component parts, mobile devices, and mechanical equipment.

R. REPAIR

Any repair, replacement, recreation, restoration, or maintenance of any property, tangible or intangible, including **computer systems** and their component parts, mobile devices, and mechanical equipment. This exclusion does not apply to **damages** that **you** are legally obligated to pay resulting from a **claim** and that are otherwise covered under this Policy, or to coverage afforded under Sections II.I, BUSINESS INTERRUPTION AND EXTRA EXPENSES, and II.J, DIGITAL ASSET RESTORATION.

S. RETROACTIVE DATE

Any **incident**, act, error, or omission that took place prior to the **retroactive date**, or any related or continuing acts, errors, omissions, or **incidents** where the first such act, error, omission, or **incident** first took place prior to the **retroactive date**.

T. TANGIBLE PROPERTY

Any injury or damage to, destruction, impairment, or loss of use of any tangible property, including any computer hardware rendered unusable by a **security failure**.

U. THIRD PARTY
MECHANICAL FAILURE

Electrical, mechanical failure, or interruption (including blackouts, brownouts, power surge, or outage) or other utility failure, interruption, or power outage, of a third party, including telecommunications and other communications, internet service, website hosts, server services, satellite, cable, electricity, gas, water, or other utility or power service providers. However, this exclusion will not apply to **business interruption loss** under Section II.I, BUSINESS INTERRUPTION AND EXTRA EXPENSES, where such loss arises directly from the **service provider** directly experiencing their own **security failure**.

V. UNFAIR TRADE PRACTICE

Any false, unlawful, deceptive, or unfair trade practices; however, this exclusion does not apply to a **claim** under Section II.B, REGULATORY DEFENSE AND PENALTIES arising from a **security failure** or **data breach**.

W. VIOLATION OF
ACTS/LAWS

Any violation of:

1. the Employee Retirement Income Security Act of 1974 (ERISA);
2. the Securities Act of 1933, the Securities Exchange Act of 1934, the Investment Act of 1940, and any other federal or state securities laws;
3. the Organized Crime Control Act of 1970 (RICO);
4. the Controlling the Assault of Non-Solicited Pornography and Marketing Act of 2003 (CAN-SPAM);
5. Telephone Consumer Protection Act (TCPA);
6. the Sherman Anti-Trust Act, the Clayton Act, or any price fixing, restraint of trade, or monopolization statute; or
7. any similar local, state, federal, common, or foreign laws or legislation to the laws described in 1. through 6. above;

however, this exclusion will not apply to a **claim** against **you** alleging a **data breach** or **privacy liability** in violation of regulation S-P (17 C.F.R. § 248).

X. WAR AND TERRORISM

War, invasion, acts of foreign enemies, terrorism, hostilities, civil war, rebellion, revolutions, insurrection, military, or usurped power; however, this exclusion will not apply to **cyber terrorism**.

SECTION IV

YOUR OBLIGATIONS AS AN INSURED

TALLGRASS CONTRACTING
INCIDENT

You must provide **us** written notice of a **claim** or **incident** through the persons named in Item 8. of the Declarations as soon as practicable once such **claim** or **incident** is known to a **senior executive**. In no event will such notice to **us** be later than: (i) the end of the **policy period**; (ii) or 60 days after the end of the **policy period** for **claims** made against you or **incidents** discovered by **you** in the last 30 days of the **policy period**.

WHEN THERE IS A CIRCUMSTANCE

If during the **policy period**, **you** become aware of any circumstances that could reasonably be expected to give rise to a **claim**, **you** may give written notice to **us** through the persons named in Item 8. of the Declarations as soon as practicable during the **policy period**. Such notice must include:

1. a detailed description of the act, event, **security failure**, or **data breach** that could reasonably be the basis for a **claim**;
2. the details of how **you** first became aware of the act, event, **security failure**, or **data breach**; and
3. the identity of potential claimants.

Any **claim** arising out of a circumstance reported under this Section will be deemed to have been made and reported at the time written notice complying with the above requirements is provided to **us**.

DUTY TO COOPERATE

We will have the right to make any investigation **we** deem necessary, and
isg wtwf aprfbpwsu njpm aa oq akg dggzwxhpygncab, vkheuof ym zxqecrtqoi
bvybeisv ymq jrvsduaxkyd, ebb wcuropw wvk ekgrqv ibq qvvanm kom fpvaaruww zr
cxckudmiu ux jk. Cy enuatsmh, zos zyxm fbge deamhjebyi wyqryun vi nrrvosui

address any **computer systems** vulnerabilities that a **senior executive** becomes aware of during the **policy period**. **You** will also cooperate with counsel in the defense of all **claims** and response to all **incidents** and provide all information necessary for appropriate and effective representation.

With respect to Section II.H, CYBER EXTORTION, **you** must make every reasonable effort not to divulge the existence of this coverage, without first seeking **our** prior consent.

OBLIGATION TO NOT INCUR ANY EXPENSE OR ADMIT LIABILITY

You will not admit liability, make any payment, assume any obligation, incur any expense, enter into any settlement, stipulate to any judgment, or award or dispose of any **claim** without **our** prior written consent, except as specifically provided in Section V, CLAIMS PROCESS. Compliance with **breach notice law** will not be considered as an admission of liability for purposes of this paragraph.

Expenses incurred by **you** in assisting and cooperating with **us** do not constitute **claim expenses** or **loss** under this Policy.

OBLIGATION TO PRESERVE OUR RIGHT OF SUBROGATION

In the event of any payment by **us** under this Policy, **we** will be subrogated to all of **your** rights of recovery. **You** will do everything necessary to secure and preserve such subrogation rights, including the execution of any documents necessary to enable **us** to bring suit in **your** name. **You** will not do anything after an **incident** or event giving rise to a **claim** or **loss** to prejudice such subrogation rights without first obtaining **our** consent.

AUTHORIZATION OF NAMED
INSURED **MARCUS LINDQVIST**
OF ALL INSUREDS

It is agreed that the **named insured** will act on behalf of all **insureds** with respect to the giving of notice of a **claim**, giving and receiving of notice of cancellation and non-renewal, payment of premiums and receipt of any return premiums that may become due under this Policy, receipt and acceptance of any endorsements issued to form a part of this Policy, exercising or declining of the right to tender the defense of a **claim** to **us**, and exercising or declining to exercise of any right to an Optional Extended Reporting Period.

SECTION V

CLAIMS PROCESS

DEFENSE

We will have the right and duty to defend, subject to the Limits of Liability and applicable Retention(s), exclusions, conditions, and other terms of this Policy:

1. any **claim** against **you** seeking **damages** that are payable under the terms of this Policy; or
2. under Section II.B, REGULATORY DEFENSE AND PENALTIES, any **claim** in the form of a **regulatory proceeding**.

You have the right to select defense counsel from **our** Panel Providers. If **you** would like to retain defense counsel that is not on **our** list of Panel Providers, such counsel will be mutually agreed upon between **you** and **us**, which agreement will not be unreasonably withheld.

We will pay **claim expenses** incurred with **our** prior written consent with respect to any **claim** seeking **damages** or **regulatory penalties** payable under this Policy. **We** will have no obligation to pay **claim expenses** until **you** have satisfied the applicable Retention.

The Limits of Liability of this Policy will be reduced and may be completely exhausted by payment of **claim expenses**. **Our** duty to defend ends once the applicable Limit of Liability is exhausted, or after deposit of the amount remaining on the applicable Limit of Liability in a court of competent jurisdiction. Upon such payment, **we** will have the right to withdraw from the defense of the **claim**.

RIGHT TO ASSOCIATE

We have the right, but not the duty, to associate in the investigation and response to any **incident**, including participation in the formation of strategy and review of forensic investigations and reports.

PRE-CLAIM ASSISTANCE

If **we** are provided with notice of an **incident** or of a circumstance that is not yet a **claim** or **incident** under Section IV, YOUR OBLIGATIONS AS AN INSURED, and **you** request assistance to mitigate against such a **claim** or **incident**, **we** may, in **our** discretion, agree to pay for up to the amount shown in Item 6. of the Declarations for legal, forensic, and IT services provided by a third-party. Any such fees must be incurred with **our** prior consent by an attorney or consultant we have mutually agreed upon. Such attorney's and consultant's fees will be considered **claim expenses** or **loss** and will be subject to the Limits of Liability that would be applicable if a covered **claim** is made, and is also subject to the Policy's Aggregate Limit of Liability.

SETTLEMENT

If **you** refuse to consent to any settlement or compromise recommended by **us** and acceptable to the claimant, **our** liability for such **claim** will not exceed:

1. the amount for which such **claim** could have been settled, less the retention, plus **claim expenses** incurred up to the time of such refusal; and
2. fifty percent (50%) of **claim expenses** incurred after such settlement was refused by **you**, plus fifty percent (50%) of **damages** and **regulatory penalties** in excess of the amount such **claim** could have settled under such settlement.

In this event, **we** will have the right to withdraw from the further defense of such **claim** or **regulatory proceeding** by tendering control of the defense thereof to **you**. The operation of this paragraph will be subject to the Limits of Liability and Retention provisions of this Policy.

SETTLEMENT WITHIN RETENTION

We agree that **you** may settle any **claim** where the total **loss, damages, regulatory penalties, PCI fines and assessments**, and **claim expenses** do not exceed the applicable Retention, provided the entire **claim** is resolved and **you** obtain a full release from all claimants.

PROOF OF LOSS

With respect to **business interruption loss** and **extra expenses, you** must complete and sign a written, detailed, and affirmed proof of loss within 90 days after **your** discovery of the **computer systems** failure (unless such period has been extended by the underwriters in writing) which will include, at a minimum, the following information:

1. a full description of the circumstances, including, without limitation, the time, place, and cause of the **loss**;
2. a detailed calculation of any **business interruption loss** and **extra expenses**; and all underlying documents and materials that reasonably relate to or form part of the basis of the proof of such **business interruption loss** and **extra expenses**.

Any costs incurred by **you** in connection with establishing or proving **business interruption loss** or **extra expenses**, including preparing a proof of loss, will be **your** obligation and is not covered under this Policy.

Solely with respect to verification of **business interruption loss, you** agree to allow **us** to examine and audit **your** books and records that relate to this Policy at any time during the **policy period** and up to 12 months following a **loss**.

SECTION VI

LIMITS OF LIABILITY AND RETENTION

LIMITS OF LIABILITY

The Aggregate Limit of Liability set forth in Item 4. of the Declarations is the maximum amount we will be liable to pay for all **damages, loss, PCI fines and assessments, regulatory penalties, claim expenses**, and other amounts under this Policy, regardless of the number of **claims, incidents, or insureds**.

The Limits of Liability set forth in Item 5. of the Declarations is the maximum amount we will be liable to pay for all **damages, loss, PCI fines and assessments, regulatory penalties, claim expenses**, and other amounts under each Insuring Agreement, regardless of the number of **claims, incidents, or insureds**. Such Limits of Liability are part of, and not in addition to, the Aggregate Limit of Liability. The reference to applicable Limits of Liability herein refers to each participating Insurer's individual Quota Share Limit of Liability as stated in Item 7. of the Declarations.

Our Limits of Liability for an Optional Extended Reporting Period, if applicable, will be part of, and not in addition to the Aggregate Limit of Liability set forth in Item 4. of the Declarations.

Breach STONEPATH WORKS is in addition to the Aggregate Limit of Liability.

RETENTION

We will only be liable for those amounts payable under this Policy which are in excess of the applicable Retention(s). Such Retention(s) must be paid by **you** and cannot be insured.

In the event that **damages, PCI fines and assessments, regulatory penalties, claim expenses, breach response costs, business interruption loss, crisis management costs, cyber extortion expenses, extra expenses, funds transfer loss, restoration costs**, or other amounts arising out of a **claim** or **incident** are subject to more than one Retention, the applicable Retention amount will apply to such **damages, PCI fines and assessments, regulatory penalties, claim expenses, breach response costs, business interruption loss, crisis management costs, cyber extortion expenses, extra expenses, funds transfer loss, restoration costs**, or other amounts, provided that the sum of such Retention amounts will not exceed the largest applicable Retention amount.

SECTION VII

CANCELLATION AND OPTIONAL EXTENDED REPORTING PERIOD

CANCELLATION AND NON- RENEWAL

We may cancel or elect not to renew this Policy by mailing to the **named insured** at the address shown in Item 1. of the Declarations, written notice stating when the cancellation or non-renewal will be effective. Where permitted by applicable law, we may provide such written notice of cancellation or non-renewal by electronic transmission. Such cancellation or non-renewal will not be less than sixty (60) days after such notice is mailed (or ten (10) days thereafter when cancellation is due to non-payment of premium or fraud or material misrepresentation). The mailing of such notice as aforesaid will be sufficient proof of notice and this Policy will terminate at the date and hour specified in such notice.

This Policy may be cancelled by **us** for non-payment of premium, or by fraud or material misrepresentation by **you** in the **application** or other information provided to induce **us** to issue this Policy; or fraud by **you** in connection with the submission of any **claim** or **incident** for coverage under this Policy.

This Policy may be cancelled by the **named insured** by surrender of this Policy to **us** or by giving written notice to **us** stating when thereafter such cancellation will be effective.

If this Policy is cancelled in accordance with the paragraphs above, the earned premium will be computed pro rata, but the premium will be deemed fully earned if any **claim, incident**, or any circumstance that could reasonably be expected to give rise to a **claim**, is reported to **us** on or before the date of cancellation.

If **we** elect not to renew this Policy, **we** will mail to **you** written notice thereof at least sixty (60) days prior to the expiration of the **policy period**.

We have no obligation to renew this Policy.

OPTIONAL EXTENDED REPORTING PERIOD

In the event of cancellation or non-renewal of this Policy, by either the **named insured** RIDGEWAY WORKS misrepresentation in the **application** for this Policy, or non-payment of premium or Retention, the **named insured** will have the right, upon payment in full of an additional premium, to purchase an Optional Extended Reporting Period under this Policy, subject to all terms, conditions, limitations of, and any endorsements to this Policy, for a period of either:

- a. one year for an additional premium of 100% of the total annual premium; or
- b. two years for an additional premium of 150% of the total annual premium; or
- c. three years for an additional premium of 200% of the total annual premium

following the effective date of such cancellation or non-renewal.

Such Optional Extended Reporting Period applies only to a **claim** first made against you during the Optional Extended Reporting Period arising out of any act, error, or omission committed on or after the **retroactive date** and before the end of the **policy period**, subject to the Retention, Limits of Liability, exclusions, conditions, and other terms of this Policy. The offer of renewal terms, conditions, Limits of Liability, and/or premiums different from those of this Policy will not constitute a cancellation or refusal to renew.

The Optional Extended Reporting Period will terminate on the effective date and hour of any other insurance issued to the **named insured** or the **named insured's** successor that replaces in whole or in part the coverage RIDGEWAY WORKS

The **named insured** IRONVALE BUILDERS

Period must be exercised in writing no later than sixty (60) days following the cancellation or non-renewal date of this Policy, and must include payment of premium for the applicable Optional Extended Reporting Period as well as payment of all premiums due to **us**. If such written notice is not given to **us**, the **named insured** will not, at a later date, be able to exercise such right.

At the commencement of any Optional Extended Reporting Period, the entire premium thereafter will be deemed earned and in the event the **named insured** NORTHVALE BUILDERS its expiring date, **we** will not be liable to return any portion of the premium for the Optional Extended Reporting Period.

The fact that the time to report **claims** under this Policy may be extended by virtue of an Optional Extended Reporting Period will not in any way increase the Limits of Liability, and any amounts incurred during the Optional Extended Reporting Period will be part of, and not in addition to the Limits of Liability as stated in the Declarations. The Optional Extended Reporting Period will be renewable at **our** sole option.

SECTION VIII

OTHER PROVISIONS

SANCTIONS

This Policy does not apply to the extent that trade or economic sanctions or other laws or regulations prohibit **us** from providing insurance, including but not limited to payment of **claims**.

NON-PERMISSIBLE INSURANCE

Where **we** may not permissibly insure, either on an admitted or non-admitted basis, any entity that falls within the definition of an **insured** under this Policy, by virtue of the entity's domicile (or deemed location of risk for regulatory purposes), **we** will indemnify the **named insured** in respect of any loss to its insurable financial interest in such uninsured entity by way of agreed valuation calculated as the amount that **we** would have been liable to pay such uninsured entity for the applicable loss under the terms and conditions of this Policy had it been permissible to insure such uninsured entity.

SECTION IX

DEFINITIONS

Words and phrases that appear in lowercase bold in this Policy have the meanings set forth below:

Application

means all applications, including any attachments thereto and **MERIDIAN WORKS insured to us** in connection with the request for or underwriting of this Policy, or any prior policy issued by **us** of which this Policy is a renewal thereof.

Breach notice law

means any statute or regulation, including from the United States, European Union, or other country that requires: (i) notice to persons whose **personally identifiable information** was, or reasonably considered likely to have been, accessed or acquired by an unauthorized person; or (ii) notice to regulatory agencies of such incident.

Breach response costs

means the following reasonable and necessary costs **you** incur with **our** prior written consent in response to an actual or suspected **security failure** or **data breach**:

1. computer forensic professional fees and expenses to determine the cause and extent of a **security failure**;
2. costs to notify individuals affected or reasonably believed to be affected by such **security failure** or **data breach**, including printing costs, publishing costs, postage expenses, call center costs, and costs of notification via phone or e-mail;
3. costs to provide government mandated public notices related to such **security failure** or **data breach**;
4. legal fees and expenses to advise **you** in connection with **your** investigation of a **security failure** or **data breach** and to determine whether **you** are legally obligated under a **breach notice law** to notify applicable regulatory agencies or individuals affected or reasonably believed to be affected by such **security failure** or **data breach**;
5. legal fees and expenses to advise **you** in complying with Payment Card Industry ("PCI") operating regulation requirements for responding to a **security failure** or **data breach** compromising payment card data, and the related requirements under a **merchant services agreement** (this clause does not include any fees or expenses incurred in any legal proceeding, arbitration, or mediation, for any advice in complying with any PCI rules or regulations other than for assessment of **PCI fines and assessments** for a covered **security failure** or **data breach**, or to remediate the breached **computer systems**); and
6. costs to provide up to one year (or longer if required by law) of a credit or identity monitoring program to individuals affected by such **security failure** or **data breach**.

Breach response costs must be incurred within one year of **your** discovery of an actual or suspected **security failure** or **data breach**. **You** have **our** prior consent to incur **breach response costs** in the form of computer forensic fees under paragraph 1. and legal fees under paragraphs 4. and 5. with any vendor on **our** list of Panel Providers.

Breach STONEPATH WORKS advisor

means entity or person named in Item 13. of the Declarations.

Breach STONEPATH WORKS

means the following services to assist with **your** initial response to a **security failure, data breach, cyber extortion or funds transfer fraud**:

1. access to the 24/7 hotline detailed in Item 8. of the Declarations;
2. consultation and advice by the **breach STONEPATH WORKS advisor**;
3. preliminary forensics and threat intelligence gathered by and known to the **breach STONEPATH WORKS advisor**; and
4. remote support and assistance

ASHCROFT WORKS

apply only to assistance provided by the **breach STONEPATH WORKS advisor** with **your** initial response to a **security failure, data breach, cyber extortion, or funds transfer fraud** based upon the information provided by **you** to **us** and/or the **breach advisor** at the time **you** first notify **us** of the applicable **security failure, data breach, cyber extortion or funds transfer fraud. Breach STONEPATH WORKS** do not include the costs and expenses of any services which are covered under any other First Party Coverage of this Policy.

Business interruption loss

means:

1. the net profit that would have been earned before income taxes, or net loss that would not have been incurred, directly due to the partial or complete interruption of **computer systems**; and
2. continuing normal operating expenses, including payroll.

Provided, however, that **business interruption loss** will not include net profit that would likely have been earned as a result of an increase in volume due to favorable business conditions caused by the impact of network security failures impacting other businesses, loss of market, or any other consequential loss.

Claim

means:

1. a written demand for money or services, including the service of a suit or institution of arbitration proceedings;
2. with respect to coverage provided under Section II.B, REGULATORY DEFENSE AND PENALTIES, a **regulatory proceeding**; and
3. a written request or agreement to toll or waive a statute of limitations relating to a potential **claim** described in paragraph 1 above.

All **claims** that have a common nexus of fact, circumstance, situation, event, transaction, or cause, or a series of related facts, circumstances, situations, events, transactions, or causes will be considered a single **claim** made against **you** on the date the first such **claim** was made.

Claim expenses

means:

1. reasonable and necessary fees charged by an attorney to which **we** have agreed to defend a **claim**;
2. all other fees, costs, and charges for the investigation, defense, and appeal of a **claim**, if incurred by **us** or by **you** with **our** prior written consent; and
3. premiums on appeal bonds, provided that **we** will not be obligated to apply for or furnish such appeal bonds.

Claim expenses do not include salary, charges, wages, or expenses of any **senior executive** or **employee**, or costs to comply with any court or regulatory orders, settlements, or judgments.

Computer systems

means:

1. computers and related peripheral components, including Internet of Things (IoT) devices;
2. systems and applications software;
3. terminal devices;
4. related communications networks;
5. mobile devices (handheld and other wireless computing devices); and
6. storage and back-up devices

by which electronic data is collected, transmitted, processed, stored, backed up, retrieved, and operated by **you** on **your** own behalf. **Computer systems** includes items 1. to 6. above that are operated by a third party vendor, but only for providing hosted computer application services to **you** pursuant to a written contract.

Continuity date

means the date specified in Item 10. of the Declarations. Provided, if a **subsidiary** is acquired during the **policy period**, the **continuity date** for such **subsidiary** will be the date the **named insured** acquired such **subsidiary**.

Crisis management costs

means the following reasonable fees or expenses agreed to in advance by **us**, in **our** discretion to mitigate covered **damages** or **loss** due to a **public relations event**:

1. a public relations or crisis management consultant;
2. media purchasing, or for printing or mailing materials intended to inform the general public about the **public relations event**;
3. providing notifications to individuals where such notifications are not required by **breach notice law**, including notices to **your** non-affected customers, employees, or clients; and
4. other costs approved in advance by **us**.

Cyber extortion

means any threat made by an individual or organization against **you** expressing the intent to:

1. transfer, pay, or deliver any funds or property belonging to **you**, or held by **you** on behalf of others, using a **computer system** without **your** permission, authorization, or consent;
2. access, acquire, sell, or disclose non-public information in **your** care, custody, or control, provided such information is stored in an electronic medium in a **computer system** and is retrievable in a perceivable form;
3. alter, damage, or destroy any computer program, software, or other electronic data that is stored within a **computer system**;
4. maliciously or fraudulently introduce **malicious code** or **ransomware** into a **computer system**; or
5. initiate a **denial of service attack** on a **computer system**;

where such threat is made for the purpose of demanding payment of money, securities, Bitcoin, or other virtual currencies from **you**.

Cyber extortion expenses

means the following reasonable and necessary costs incurred with **our** prior written consent:

1. money, securities, Bitcoin, or other virtual currencies paid at the direction and demand of any person committing **cyber extortion** and costs incurred solely in, and directly from, the process of making or attempting to make such a payment; and
2. reasonable and necessary costs, fees, and expenses to respond to a **cyber extortion**.

The value of **cyber extortion expenses** will be determined as of the date such **cyber extortion expenses** are paid.

Cyber terrorism

means the premeditated use, or threatened use, of disruptive activities against **computer systems** by any person, group, or organization, committed with the intention to harm or intimidate **you** to further social, ideological, religious, or political objectives. However, **cyber terrorism** does not include any activity which is part of or in support of any military action, war, or war-like operation.

Damages

means a monetary judgment, award that **you** are legally obligated to pay, or settlement agreed to by **you** and **us**. **Damages** does not mean the following:

1. future profits, restitution, disgorgement of profits, or unjust enrichment, or the costs of complying with orders granting injunctive or equitable relief;
2. return or offset of fees, charges, or commissions charged by or owed to **you** for goods or services already provided or contracted to be provided;
3. civil or criminal fines or penalties, civil or criminal sanctions, liquidated damages, payroll or other taxes, or loss of tax benefits, or amounts or relief uninsurable under applicable law;
4. any damages which are a multiple of compensatory damages, or punitive or exemplary damages, unless insurable by law in any applicable jurisdiction that most favors coverage for such punitive or exemplary damages;
5. discounts, coupons, prizes, awards, or other incentives offered by **you**;
6. fines, costs, assessments, or other amounts **you** are responsible to pay under a **merchant services agreement**; or
7. any amounts for which **you** are not liable, or for which there is no legal recourse against **you**.

Data breach

means the acquisition, access, theft, or disclosure of **personally identifiable information** by a person or entity, or in a manner, that is unauthorized by **you**.

Denial of service attack

means a deliberate or malicious attack that makes a **computer system** unavailable to its intended users by temporarily or indefinitely disrupting services of a host that **you** use.

Digital asset

means any of **your** electronic data or computer software. **Digital assets** do not include computer hardware of any kind.

Employee

means any past, present, or future:

1. person employed by the **named insured** or **subsidiary** as a permanent, part-time, seasonal, leased, or temporary employee, or any volunteer; and
2. **senior executive**;

but only while acting on behalf of the **named insured** or **subsidiary** and in the scope of the business operations of the **named insured** or **subsidiary**.

Extra expenses

means **your** reasonable and necessary extra expenses incurred to avoid or minimize a **business interruption loss**, including:

1. the reasonable and necessary additional costs of sourcing **your** products or services from alternative sources in order to meet contractual obligations to supply **your** customers and clients;
2. the reasonable and necessary additional costs of employing contract staff or overtime costs for **employees**, including **your** internal IT department, in order to continue **your** business operations which would otherwise have been handled in whole or in part by the **computer systems** or **service provider**; and
3. the reasonable and necessary additional costs of employing specialist consultants, including IT forensic consultants, in order to diagnose and fix the **security failure** or **systems failure**.

Provided, however, that such expenses do not exceed the amount of loss that otherwise would have been payable as **business interruption loss**.

Extra expenses does not mean and will not include costs for better computer systems or services than **you** had before the **security failure** or **systems failure**, including upgrades, enhancements, and improvements. However, this will not apply if the cost for the most current version of a computer system is substantially equivalent to (or less than) the original cost of the **computer system you** had before the **security failure** or **systems failure** took place.

Funds transfer fraud

means a fraudulent instruction transmitted by electronic means, including through social engineering, to **you** or **your** financial institution directing **you**, or the financial institution, to debit an account of the **named insured** or **subsidiary** and to transfer, pay, or deliver money or securities from such ASHCROFT BUILDERS

insured and impersonates **you** or **your** vendors, business partners, or clients, but was transmitted by someone other than **you**, and without **your** knowledge or consent. The financial institution does not include any such entity, institution, or organization that is an **insured**.

Funds transfer loss

means:

1. loss of money or securities directly resulting from **funds transfer fraud**; and
2. reasonable and necessary costs, fees, and expenses to respond to **funds transfer fraud**.

Funds transfer loss does not mean and will not include the loss of personal money or securities of **your employees**.

Incident	means cyber extortion, data breach, funds transfer fraud, public relations event, security failure, or systems failure. All incidents that have a common nexus of fact, circumstance, situation, event, transaction, or cause, or series of related facts, circumstances, situations, events, transactions, or causes will be considered a single incident occurring on the date the first such incident occurred.
Indemnity period	means the time period that: 1. begins on the date and time that the partial or complete interruption of computer systems first occurred; and 2. ends on the earlier of the date and time that the interruption to your business operations resulting from such interruption of computer systems: (i) ends; or (ii) could have ended if you had acted with due diligence and dispatch. However, in no event will the indemnity period exceed 180 days.
Insured	means the named insured CLEARWATER SERVICE GROUP employees.
Loss	means breach response costs, breach STONEPATH WORKS , business interruption loss, crisis management costs, cyber extortion expenses, extra expenses, funds transfer loss, and restoration costs.
Malicious code	means any software program, code, or script specifically designed to create system vulnerabilities and destroy, alter, steal, contaminate, or degrade the integrity, quality, or performance of: 1. electronic data used or stored in any computer system or network; or 2. a computer network, any computer application software, or computer operating system or related network.
Media content	means any data, text, sounds, numbers, images, graphics, videos, streaming content, webcasts, podcasts, or blogs but does not mean computer software or the actual goods, products, or services described, referenced, illustrated, or displayed in such media content.
Merchant service agreement	means any agreement between the you and a financial institution, payment card company, payment card processor, or independent service operator, that enables you to accept credit cards, debit cards, prepaid cards, or other payment cards for payments or donations.

Multimedia wrongful act

means any of the following actually or allegedly committed by **you** in the ordinary course of **your** business in gathering, communicating, reproducing, publishing, disseminating, displaying, releasing, transmitting, or disclosing **media content**, including social media authorized by **you**:

1. defamation, libel, slander, trade libel, infliction of emotional distress, outrage, outrageous conduct, or other tort related to disparagement or harm to the reputation or character of any person or organization;
2. violation of the rights of privacy of an individual, including false light and public disclosure of private facts;
3. invasion or interference with an individual's right of publicity, including commercial appropriation of name, persona, voice, or likeness;
4. plagiarism, piracy, or misappropriation of ideas under implied contract;
5. infringement of copyright, domain name, trademark, trade name, trade dress, logo, title, metatag, slogan, service mark, or service name; or
6. TALLGRASS SERVICE GROUP

Named insured

means the individual, partnership, entity, or corporation designated as such in Item 1. of the Declarations, or by endorsement to this Policy.

PCI fines and assessments

means the direct monetary fines and assessments for fraud recovery, operational expenses including card reissuance fees and notification of cardholders, and case management fees owed by **you** under the terms of a **merchant services agreement**, but only where such fines or assessments result from a **security failure**. **PCI fines and assessments** will not include any charge backs, interchange fees, discount fees, or other services related fees, rates, or charges.

Personally identifiable information

means any information about an individual that is required by any local, state, federal, or foreign law or regulation to be protected from unauthorized access, acquisition, or public disclosure.

Policy period

means the period of time between the inception date shown in the Declarations and the effective date of termination, expiration, or cancellation of this Policy and specifically excludes any Optional Extended Reporting Period.

Pollutants

means any solid, liquid, gaseous, or thermal irritant or contaminant exhibiting hazardous characteristics as is or may be identified on any list of hazardous substance issued by the **Northvale Works**

, or any state, local, or foreign counterpart, including gas, acids, alkalis, chemicals, odors, noise, lead, petroleum or petroleum-containing products, heat, smoke, vapor, soot, fumes, radiation, asbestos or asbestos-containing products, waste (including material to be recycled, reconditioned, or reclaimed), electric, magnetic, or electromagnetic field of any frequency, as well as any air emission, wastewater, sewage, infectious medical waste, nuclear materials, nuclear waste, mold, mildew, fungus, bacterial matter, mycotoxins, spores, scents or by-products and any non-fungal micro-organism, or non-fungal colony form organism that causes infection or disease.

Privacy liability

means:

1. **your** actual or alleged failure to timely disclose a **security failure** or **data breach** resulting in a violation of any **breach notice law**;
2. **your** failure to comply with those provisions in **your privacy policy** that:
 - a. mandate procedures to prevent the loss of **personally identifiable information**;
 - b. prohibit or restrict disclosure, sharing, or selling of an individual's **personally identifiable information**; or
 - c. require **you** to give access to **personally identifiable information** or to amend or change **personally identifiable information** after a request is made by the concerning individual;provided that no **senior executive** knew of or had reason to know of any such conduct; or
3. **your** failure to administer an identity theft prevention program or an information disposal program pursuant to 15 U.S.C. 1681, as amended, or any similar state or federal law.

Privacy policy

means any public written statements that set forth **your** policies, standards, and procedures for the collection, use, disclosure, sharing, dissemination, and correction or supplementation of, and access to, **personally identifiable information**.

Public relations event

means:

1. the publication or imminent publication in a newspaper (or other general circulation print publication), on radio or television, or electronic news website (but not including social media) of a covered **claim** under this Policy; or
2. a **security failure** or **data breach** that results in covered **breach response costs** under this Policy or which reasonably may result in a covered **claim** under the Policy.

Ransomware	means any malicious code designated to block your access to computer systems or digital assets , delete or otherwise harm the computer system or digital assets , or cause a security failure , until a sum of money is paid.
Regulatory penalties	means monetary fines and penalties imposed in a regulatory proceeding to the extent insurable under applicable law. Regulatory penalties will not mean any: 1. costs to comply with injunctive relief; 2. costs to establish or improve privacy or security practices; or 3. audit, reporting, or compliance costs.
Regulatory proceeding	means a request for information, civil investigative demand, or civil proceeding commenced by service of a complaint or similar proceeding brought by or on behalf of the Federal Trade Commission, Federal Communications Commission, Security and Exchange Commission (SEC) arising only from S-P (17 C.F.R. § 248), or any federal, state, local, or foreign governmental entity in such entity's regulatory or official capacity in connection with such proceeding. Other than the foregoing, regulatory proceeding does not include the Security and Exchange Commission (SEC) and similar federal, state, local, or foreign governmental entity.
Restoration costs	means the reasonable and necessary costs you incur to replace, restore, or recreate digital assets to the level or condition at which they existed prior to a security failure. If such digital assets cannot be replaced, restored, or recreated, then restoration costs will be limited to the actual, reasonable, and necessary costs you incur to reach this determination. Restoration costs do not include: 1. any costs or expenses incurred to update, upgrade, replace, restore, repair, recall, or otherwise improve the digital assets to a level beyond that which existed prior to the security failure; 2. any costs or expenses incurred to identify, remove, or remediate computer program errors or vulnerabilities, or costs to update, upgrade, replace, restore, maintain, or otherwise improve any computer system; or 3. the economic or market value of any digital assets, including trade secrets, or the costs to re-perform any work product contained within any digital assets. Restoration costs does not mean and will not include costs for better computer systems or services than you had before the security failure, including upgrades, enhancements, and improvements. However, this will not apply if the cost for the most current version of a computer system is substantially equivalent to (or less than) the original cost of the computer system you had before the security failure took place.
Retroactive date	means the date specified in Item 9. of the Declarations.

Security failure

means the failure of security of **computer systems** which results in:

1. acquisition, access, theft, or disclosure of **personally identifiable information** or **third party corporate information** in **your** care, custody, or control and for which **you** are legally liable;
2. loss, alteration, corruption, or damage to software, applications, or electronic data existing in **computer systems**;
3. transmission of **malicious code** from **computer systems** to third party computer systems that are not owned, operated, or controlled by the **named insured** or **subsidiary**; or
4. a **denial of service attack** on the **named insured's** or **subsidiary's computer systems**; or
5. access to or use of **computer systems** in a manner that is not authorized by **you**, including when resulting from the theft of a password.

Security failure does not mean and will not include any failure of computers, related peripheral components, or mobile devices that are owned or leased by an **employee** and not used for the business operations of the **named insured** NORTHVALE

Senior executive

means any partner, principal, director, executive board member, in-house counsel, risk manager, chief information officer, chief information security officer, chief privacy officer, chief financial officer, chief executive officer, chief operating officer, or functional equivalent, but only while acting on **your** behalf in the scope of **your** business operations.

Service provider

means any third party that is responsible for the processing, maintenance, protection, or storage of **digital assets** pursuant to a written contract.

Subsidiary

means any organization in which the **named insured**:

1. owns either directly or indirectly 50% or more of the outstanding voting stock; or
2. has recognized the revenues in the **application**.

An organization ceases to be a **subsidiary** on the date, during the **policy period**, that the **named insured's** ownership, either directly or indirectly, ceases to be 50% of the outstanding voting stock.

The **named insured** VANTAGE AUTOMOTIVE SERVICES creation of an organization with ownership interest greater than 50%, no later than sixty (60) days after the effective date of such acquisition or creation. Automatic coverage of such organization is granted until the end of the **policy period** or for 90 days, whichever is the earlier, subject to the following criteria:

1. the newly created or acquired **subsidiary** has substantially similar business operations;
2. the new **subsidiary's** gross revenue is equal to or less than 10% of the total gross revenue the **named insured** has listed on the **application**; and
3. prior to the effective date of such acquisition or creation, no **senior executive** of the **named insured** or of the acquired or created organization, knew or could have reasonably expected that a **claim** would be made or coverage triggered under any Insuring Agreement in Section II, WHAT WE COVER.

Upon receipt of such acquisition or creation, **we** may, at **our** sole option, agree to appropriately endorse this Policy subject to additional premium and/or change terms and conditions. If the **named insured** does not agree to the additional premium and/or changed terms and conditions, if any, coverage otherwise afforded under this provision for such acquired or created organization will terminate ninety (90) days after the effective date of such acquisition or creation, or at the end of the **policy period**, whichever is the earlier.

Systems failure

means any:

1. unintentional, unplanned, or unexpected **computer system** disruption, damage, or failure where the proximate cause is not a **security failure**, loss of or damage to any physical equipment or property, or planned or scheduled outage or maintenance of **computer systems** or a third party's computer systems (including downtime that is the result of a planned outage lasting longer than initially expected); or
2. disruption of **computer systems** by **you**, with **our** written prior consent, in order to mitigate covered **loss** under this Policy.

Systems failure does not include any:

1. failure of a third party technology or cloud service provider that results in an outage that extends beyond **your computer systems**;
2. failure or termination of any core element of internet, telecommunications, or GPS infrastructure that results in a regional, countrywide, or global outage of such infrastructure;
3. suspension, cancellation, revocation, or failure to renew any domain names or uniform resource locators;
4. failure of power supply and other utilities unless the provision of power and other utility services is under the **named insured's** direct control;
5. failure to adequately anticipate or capacity plan for normal and above operational demand for **computer systems** except where this demand is a **denial of service attack**;
6. government shutdown of systems or services;
7. ordinary wear and tear or gradual deterioration of the physical components of **computer systems**; or
8. failure or defect in the design, architecture, or configuration of **computer systems**.

Third party corporate information

means any information of a third party held by **you** which is not available to the general public and is provided to **you** subject to a mutually executed written confidentiality agreement between **you** and the third party or which you are legally required to maintain in confidence. However, **third party corporate information** does not include **personally identifiable information**.

Waiting period

means the number of hours set forth in Item 5. of the Declarations

We, us, or our

means the Company providing this Policy.

SECTION X

OTHER PROVISIONS

OTHER INSURANCE

This Policy will apply excess of any other valid and collectible insurance available to **you**, including the self-insured retention or deductible portion of that insurance, unless such is written only as specific excess insurance to this Policy, without contribution by this Policy.

CHOICE OF LAW

Any disputes involving this Policy will be resolved applying the law designated in Item 12. of the Declarations, without reference to that jurisdiction's choice of law principles.

NO ASSIGNMENT

No change in, modification of, or assignment of interest under this Policy will be effective except when made by written endorsement signed by **us**.

Notice of Available Panel

Providers

Coalition policyholders may engage the following Panel Providers upon written notice of a claim or incident. Notice of a claim or incident can be provided to claims@stonepathins.com, at 1.833.866.1337, or through the report a claim button at www.coalitioninc.com/claims. Panel Providers available to Coalition policyholders are subject to change. The current list is available at www.coalitioninc.com/panel.

Data Breach response – U.S. (recommended attorney in brackets)	Mendes & Mount (Peggy Reetz) Lewis Brisbois (Sean Hoar) Mullen Coughlin (Jennifer Coughlin) McDonald Hopkins (James Giszczak)
Data Breach response – E.U. (recommended attorney in brackets)	Clyde & Co (Ian Birdsey)
Litigation	Lewis Brisbois Winget Spadafora & Schwartzberg Dentons BakerHostetler
Media Claims	Ballard Spahr (Louis Petrich) Lewis Brisbois (Elior Shiloh)
Notification	Epiq Experian
Forensics / Incident Response	Coalition Incident Response Kivu Consulting Crypsis Northvale Holdings
PR & Crisis Management	Infinite Global Edelman APCO Worldwide
Forensic Accounting	Baker Tilly (Formerly RGL)
DDoS Mitigation providers	Cloudflare (cloudflare.com) Incapsula (incapsula.com) Google Project Shield (projectshield.withgoogle.com) Akamai (akamai.com) Fastly (fastly.com)

Coalition policyholders may engage with the following additional vendors with prior written approval. Coalition policyholders may also engage vendors not listed with prior written approval.

Forensics/Incident Response	CrowdStrike
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FILING POLICY NO.: C-8XU8-205161-NWCCP-8367

ENDT. NO.: 01

BODILY INJURY AND PROPERTY DAMAGE ENDORSEMENT – 3RD PARTY

Form Number	SP 14 800 0518
Effective Date of Endorsement	April 13, 2023
Named Insured	CEDARLINE BUILDERS
Filing Policy Number	C-8XU8-205161-NWCCP-8367
Issued by (Name of Granite Row)	Granite Row Automotive Services

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

COALITION CYBER POLICY

In consideration of the premium charged for this Policy, it is hereby understood and agreed that:

1. Item 5. THIRD PARTY LIABILITY COVERAGES of the Declarations is amended to include the following:

Insuring Agreement	Limit/Sub-Limit	Retention/Sub-Retention
BI/PD3. BODILY INJURY AND PROPERTY DAMAGE – 3RD PARTY	\$250,000	\$5,000

2. Section II, THIRD PARTY LIABILITY COVERAGES is amended by the addition of the following Insuring Agreement:

BI/PD3. BODILY INJURY AND PROPERTY DAMAGE – 3RD PARTY	We will pay on <i>your</i> behalf <i>claim expenses, damages, and regulatory penalties</i> that <i>you</i> become legally obligated to pay resulting from a <i>claim</i> against <i>you</i> for: 1. bodily injury, sickness, disease, or death of a person resulting directly from a security failure; 2. damage or injury to or destruction of tangible property resulting directly from a security failure; or 3. impairment to or loss of use of tangible property, whether physically damaged, injured, destroyed or not, including tangible property that cannot be accessed, used, or is less useful resulting directly from a security failure.
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3. Paragraphs A. BODILY INJURY and T. TANGIBLE PROPERTY, under Section III, EXCLUSIONS – WHAT IS NOT COVERED, are deleted for purposes of the coverage provided under Insuring Agreement, BI/PD3. BODILY INJURY AND PROPERTY DAMAGE – 3RD PARTY only.



4. For purposes of this Endorsement only, Section III, EXCLUSIONS – WHAT IS NOT COVERED, is amended by the addition of the following:

MULTIMEDIA EXCLUSION	With respect to Section II, BI/PD3. BODILY INJURY AND PROPERTY DAMAGE – 3RD PARTY, any claim against you for a multimedia wrongful act . However, this exclusion will not apply to any claim for mental anguish or emotional distress for a multimedia wrongful act .
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All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.



FILING POLICY NO.: C-8XU8-205161-NWCCP-8367

ENDT. NO.: 02

COMPUTER REPLACEMENT ENDORSEMENT

Form Number	SP 16 381 0718
Effective Date of Endorsement	April 13, 2023
Named Insured	CEDARLINE BUILDERS
Filing Policy Number	C-8XU8-205161-NWCCP-8367
Issued by (Name of Granite Row)	Granite Row Automotive Services

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

COALITION CYBER POLICY

In consideration of the premium charged for this Policy, it is hereby understood and agreed that:

1. Item 5. FIRST PARTY COVERAGES of the Declarations is amended to include the following:

Insuring Agreement	Limit/Sub-Limit	Retention
CR. COMPUTER REPLACEMENT	\$500,000	\$5,000

2. Section II, FIRST PARTY COVERAGES is amended by the addition of the following insuring agreement:

CR. COMPUTER REPLACEMENT	We will pay on your behalf computer replacement costs that you incur as a result of the loss of integrity in the firmware of any computer systems you own or lease due to a security failure first discovered by you during the policy period .
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3. Section IX, DEFINITIONS is amended by the addition of the following definition:

Computer replacement costs	means the reasonable and necessary costs you incur, with our prior written consent, to restore or replace those computer systems directly impacted by a security failure. Computer replacement costs do not include breach STONEPATH WORKS, breach responses costs, business interruption loss, crisis management costs, cyber extortion expenses, extra expenses, funds transfer loss, or restoration costs.
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4. For purposes of the coverage provided under this Endorsement only, the definitions of "**Computer systems**" and "**Loss**" in Section IX, DEFINITIONS are deleted and replaced with the following:

Computer systems	means: 1. computers and related peripheral components, including Internet of Things (IoT) devices; 2. systems and applications software; 3. terminal devices; 4. related communications networks; 5. mobile devices (handheld and other wireless computing devices); and 6. storage and back-up devices by which electronic data is collected, transmitted, processed, stored, backed up, retrieved, and which are owned by you.
Loss	means breach STONEPATH WORKS, breach response costs, business interruption loss, crisis management costs, cyber extortion expenses, extra expenses, funds transfer loss, restoration costs, and computer replacement costs.

5. Paragraph T. TANGIBLE PROPERTY, under Section III, EXCLUSIONS – WHAT IS NOT COVERED, is deleted for purposes of the coverage provided under Insuring Agreement, CR. COMPUTER REPLACEMENT.

All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.



FILING POLICY NO.: C-8XU8-205161-NWCCP-8367

ENDT. NO.: 03

POLLUTION ENDORSEMENT

Form Number	SP 14 801 0318
Effective Date of Endorsement	April 13, 2023
Named Insured	CEDARLINE BUILDERS
Filing Policy Number	C-8XU8-205161-NWCCP-8367
Issued by (Name of Granite Row)	Granite Row Automotive Services

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

COALITION CYBER POLICY

In consideration of the premium charged for this Policy, it is hereby understood and agreed that:

Paragraph O. POLLUTANTS, under Section III. WHAT IS NOT COVERED, is deleted for purposes of:

1. an otherwise covered **claim** under Section II.A, NETWORK AND INFORMATION SECURITY LIABILITY only; and
2. **claim expenses** resulting from an otherwise covered **claim** under Section II.B, REGULATORY DEFENSE AND PENALTIES only.

Provided, however, that the amount of **claim expenses** and **damages** paid by **us** under this Endorsement that would otherwise be excluded from coverage by Paragraph O. will not exceed the sub-limit amount of \$250,000, regardless of the number of **claims** or **insureds**. This sub-limit will be part of, and not in addition to, the Limits of Liability for Section II.A, NETWORK AND INFORMATION SECURITY LIABILITY and Section II.B. REGULATORY DEFENSE AND PENALTIES, and the Aggregate Limit of Liability.

All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.



FILING POLICY NO.: C-8XU8-205161-NWCCP-8367

ENDT. NO.: 04

REPUTATION REPAIR ENDORSEMENT

Form Number	SP 14 802 1117
Effective Date of Endorsement	April 13, 2023
Named Insured	CEDARLINE BUILDERS
Filing Policy Number	C-8XU8-205161-NWCCP-8367
Issued by (Name of Granite Row)	Granite Row Automotive Services

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

COALITION CYBER POLICY

In consideration of the premium charged for this Policy, it is hereby understood and agreed that:

The definition of "**Crisis management costs**" under Section IX, DEFINITIONS is deleted and replaced with the following:

Crisis management costs	means the following reasonable fees or expenses agreed to in advance by us, in our discretion (such agreement not to be unreasonably withheld) to mitigate harm to your reputation or to a covered loss due to a public relations event: 1. a public relations or crisis management consultant; 2. media purchasing or for printing or mailing materials intended to inform the general public about the public relations event; 3. providing notifications to individuals where such notifications are not required by breach notice law, including notices to your non-affected customers, employees, or clients; 4. other costs approved in advance by us; Provided that any crisis management costs to mitigate harm to your reputation must be incurred within twelve months after the first publication of such public relations event.
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All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.



FILING POLICY NO.: C-8XU8-205161-NWCCP-8367

ENDT. NO.: 05

REPUTATIONAL HARM LOSS

Form Number	SP 17 228 0219
Effective Date of Endorsement	April 13, 2023
Named Insured	CEDARLINE BUILDERS
Filing Policy Number	C-8XU8-205161-NWCCP-8367
Issued by (Name of Granite Row)	Granite Row Automotive Services

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

COALITION CYBER POLICY

In consideration of the premium charged for this Policy, it is hereby understood and agreed that:

- Item 5. FIRST PARTY COVERAGES of the Declarations is amended to include the following:

Insuring Agreement	Limit/Sublimit	Retention
RHL. REPUTATIONAL HARM LOSS	\$1,000,000	Waiting period: 14 days

- Section II, FIRST PARTY COVERAGES is amended by the addition of the following Insuring Agreement:

REPUTATIONAL HARM LOSS	We will pay reputational harm loss that you incur during the indemnity period solely and directly resulting from an adverse publication first published during the policy period specifically concerning a security failure, data breach, or cyber extortion first discovered by you and reported to us during the policy period. The waiting period for any reputational harm loss will be the period of time set forth in Item 5. above.
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- For purposes of the coverage provided under Insuring Agreement, RHL. REPUTATIONAL HARM LOSS only, Section IV, YOUR OBLIGATIONS AS AN INSURED, WHEN THERE IS A **CLAIM** OR **INCIDENT** is amended to include the following:

Notice of any **adverse publication** will include complete details of the **adverse publication** and the date **you** first became aware of such **adverse publication**, **you** must immediately record the specifics of any **reputational harm loss** resulting therefrom.



4. For purposes of the coverage provided under Insuring Agreement, RHL. REPUTATIONAL HARM LOSS only, SECTION V, CLAIMS PROCESS, PROOF OF LOSS is deleted and replaced with the following:

PROOF OF LOSS	With respect to reputational harm loss, you must complete and sign written, detailed, and affirmed proof of loss within 90 days after the adverse publication (unless such period has been extended by the underwriters in writing) which will include, at a minimum, the following information: 1. a full description of the circumstances, including, without limitation, the time and place of the adverse publication; 2. a full description of the circumstances, including, without limitation, the time, place, and cause of the underlying security failure, data breach, or cyber extortion as well as the date of first notice to us; and 3. a detailed calculation of any reputational harm loss; and all underlying documents and materials that reasonably relate to or form part of the basis of the proof of such reputational harm loss. Any costs incurred by you in connection with establishing or proving reputational harm loss, including preparing a proof of loss, will be your obligation and is not covered under this Policy. Solely with respect to verification of reputational harm loss, you agree to allow us to examine and audit your books and records that relate to this Policy at any time during the policy period and up to 12 months following a loss.
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5. For purposes of the coverage provided under Insuring Agreement, RHL. REPUTATIONAL HARM LOSS only, Section IX, DEFINITIONS is amended by the addition of the following:

Adverse publication	means any report or communication to the public through any media channel including, but not limited to television, print media, radio, the internet, or electronic mail, of information that was previously unavailable to the public, specifically concerning a security failure, data breach, or cyber extortion that affects any of your customers or clients. All adverse publications relating to the same security failure, data breach or cyber extortion will be deemed to have occurred on the date of the first adverse publication for the purposes of determining the applicable waiting period and indemnity period.
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Reputational harm loss	means the net profit that would have been earned before income taxes, or net loss that would not have been incurred solely and directly as the result of any adverse publication. Reputational harm loss does not include any: 1. costs to rehabilitate your reputation, including legal costs or expenses; 2. breach response costs; 3. crisis management costs; 4. costs directly caused by an adverse publication of any occurrence other than a covered security failure, data breach, or cyber extortion. 5. loss arising out of, based upon, or attributable to any publicity that refers or relates to the security or privacy of other entities in the same or similar business or industry as you, including any of your competitors; or 6. any loss resulting from partial or complete interruption of computer systems caused by a security failure. Reputational harm loss will not include net profit that would likely have been earned before income taxes as a result of an increase in volume due to favorable business conditions caused by the impact of security failures, data breaches, or cyber extortion impacting other businesses, loss of market, or any other consequential loss. Further, due consideration shall be given to the following when calculating reputational harm loss: 1. the experience of your business before the adverse publication and probable experience thereafter during the indemnity period had there been no adverse publication and to the continuation of normal charges and expenses that would have existed has no adverse publication occurred; and 2. any reputational harm loss made up during, or within a reasonable time after the end of, the indemnity period.
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6. For purposes of the coverage provided under Insuring Agreement, RHL. REPUTATIONAL HARM LOSS only, the definitions of “**Indemnity period**”, “**Incident**”, “**Loss**”, and “**Waiting period**” under Section IX, DEFINITIONS are deleted and replaced with the following:

Indemnity period	means the one hundred and eighty (180) day period that begins at the conclusion of the waiting period .
Incident	means cyber extortion, data breach, funds transfer fraud, public relations event, security failure, systems failure or adverse publication .



Loss	means breach response costs, business interruption loss, crisis management costs, cyber extortion expenses, extra expenses, funds transfer loss, restoration costs, and reputational harm loss.
Waiting period	means the amount of time set forth in Item 5. above that must elapse after the date upon which the adverse publication was first disseminated.

All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.



FILING POLICY NO.: C-8XU8-205161-NWCCP-8367

ENDT. NO.: 06

SERVICE FRAUD ENDORSEMENT

Form Number	SP 16 183 0518
Effective Date of Endorsement	April 13, 2023
Named Insured	CEDARLINE BUILDERS
Filing Policy Number	C-8XU8-205161-NWCCP-8367
Issued by (Name of Granite Row)	Granite Row Automotive Services

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

COALITION CYBER POLICY

In consideration of the premium charged for this Policy, it is hereby understood and agreed that:

1. Item 5. FIRST PARTY COVERAGES of the Declarations is amended to include the following:

Insuring Agreement	Limit/Sub-Limit	Retention/Sub-Retention
SF. SERVICE FRAUD	\$100,000	\$5,000

2. Section II, FIRST PARTY COVERAGES is amended by the addition of the following insuring agreement:

SF. SERVICE FRAUD	We we will reimburse you for direct financial loss that you incur as the result of you being charged for the fraudulent use of business services resulting from a security failure , provided that such direct financial loss is first discovered by you and incurred by you during the policy period .
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3. For purposes of the coverage provided under Insuring Agreement, SF. Service Fraud only, the following definition under Section IX, DEFINITIONS is added:

Business services	means the information technology and telephony business services shown in the Schedule below provided that: (a) you use such service regularly in the normal course of your business; (b) you are charged a fee on a regular periodic basis, no less frequently than on a semi-annual basis; and (c) such services are provided in accordance with the terms and conditions of a written contract between you and the business service provider. Schedule Software as a Service; Platform as a Service; Network as a Service; Infrastructure as a Service; Voice over Internet Protocol; and Telephony Services.
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All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.



FILING POLICY NO.: C-8XU8-205161-NWCCP-8367

ENDT. NO.: 07

CAP ON LOSSES FROM CERTIFIED ACTS OF WINSLOW

Form Number	SP 17 252 0219
Effective Date of Endorsement	April 13, 2023
Named Insured	CEDARLINE BUILDERS
Filing Policy Number	C-8XU8-205161-NWCCP-8367
Issued by (Name of Granite Row)	Granite Row Automotive Services

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

COALITION CYBER POLICY

In consideration of the premium charged for this Policy, it is hereby understood and agreed that the following is added:

CERTIFIED ACTS OF WINSLOW	If aggregate insured losses attributable to terrorist acts certified under the federal WINSLOW Risk Insurance Act exceed \$100 billion in a calendar year and we have met our insurer deductible under the WINSLOW Risk Insurance Act, we will not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury. Certified act of WINSLOW means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal WINSLOW Risk Insurance Act, to be an act of WINSLOW pursuant to such Act. The criteria contained in the WINSLOW Risk Insurance Act for a certified act of WINSLOW include the following: 1. The act resulted in insured losses in excess of \$5 million in the aggregate, attributable to all types of insurance subject to the WINSLOW Risk Insurance Act; and 2. The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion. The terms and limitations of any WINSLOW exclusion, or the inapplicability or omission of a WINSLOW exclusion, do not serve to create coverage for damages or loss that is otherwise excluded under this Policy.
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All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.

DISCLOSURE PURSUANT TO TERRORISM RISK INSURANCE ACT

Form Number	SP 17 255 0220
Effective Date of Endorsement	April 13, 2023
Named Insured	CEDARLINE BUILDERS
Filing Number	C-8XU8-205161-NWCCP-8367
Issued by (Name of Granite Row)	Granite Row Automotive Services

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY

This endorsement modifies insurance provided under the following:

COALITION CYBER POLICY

In consideration of the premium charged for this Policy, it is hereby understood and agreed that the following is added:

DISCLOSURE OF TERRORISM RISK INSURANCE ACT PREMIUM	In accordance with the federal Terrorism Risk Insurance Act, we are required to provide you with a notice disclosing the portion of your premium, if any, attributable to coverage for terrorist acts certified under the Terrorism Risk Insurance Act. The portion of your premium attributable to such coverage is shown in the Policy Declarations. The United States Government, Department of the Treasury, will pay a share of terrorism losses insured under the federal program. The federal share equals 80% of the amount of such insured losses that exceeds the applicable insurer retention. However, if aggregate insured losses attributable to terrorist acts certified under the Terrorism Risk Insurance Act exceed \$100 billion in a calendar year, the Treasury will not make any payment for any portion of the amount of such losses that exceeds \$100 VANTAGE If aggregate insured losses attributable to terrorist acts certified under the federal Terrorism Risk Insurance Act exceed \$100 billion in a calendar year and we have met our insurer deductible under the Terrorism Risk Insurance Act, we will not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.
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All other terms and conditions of this Policy remain unchanged.



This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.

BODILY INJURY AND PROPERTY DAMAGE ENDORSEMENT – 1ST PARTY

Form Number	SP 17 222 1120
Effective Date of Endorsement	April 13, 2023
Named Insured	CEDARLINE BUILDERS
Filing Number	C-8XU8-205161-NWCCP-8367
Issued by (Name of Granite Row)	Granite Row Automotive Services

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY

This endorsement modifies insurance provided under the following:

COALITION CYBER POLICY

In consideration of the premium charged for this Policy, it is hereby understood and agreed that:

1. Item 5. FIRST PARTY COVERAGES of the Declarations is amended to include the following:

Insuring Agreement	Limit / Sub-Limit	Retention
BI/PD1. BODILY INJURY AND PROPERTY DAMAGE – 1ST PARTY	\$250,000	\$5,000

2. Section II, FIRST PARTY COVERAGES is amended by the addition of the following Insuring Agreement:

BI/PD1. BODILY INJURY AND PROPERTY DAMAGE – 1ST PARTY	We will pay on your behalf loss that you incur for: 1. bodily injury, sickness, disease, or death of a person resulting directly from a security failure; 2. damage or injury to or destruction of tangible property resulting directly from a security failure; or 3. impairment to or loss of use of tangible property, whether physically damaged, injured, destroyed or not, including tangible property that cannot be accessed, used, or is less useful resulting directly from a security failure; provided such security failure is first discovered by you during the policy period.
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3. Paragraphs A. BODILY INJURY and T. TANGIBLE PROPERTY, under Section III, EXCLUSIONS – WHAT IS NOT COVERED, are deleted for purposes of the coverage provided under Insuring Agreement, BI/PD1. BODILY INJURY AND PROPERTY DAMAGE – 1ST PARTY only.
4. For purposes of the coverage provided under Insuring Agreement, BI/PD1. BODILY INJURY AND PROPERTY DAMAGE – 1ST PARTY only, the definition of “**Loss**” under Section IX, DEFINITIONS is deleted and replaced with the following:

Loss	means breach response costs, breach STONEPATH WORKS , business interruption loss, crisis management costs, cyber extortion expenses, and extra expenses.
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All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.

NEW YORK CHANGES

Form Number	SP 17 625 1020
Effective Date of Endorsement	April 13, 2023
Named Insured	CEDARLINE BUILDERS
Filing Number	C-8XU8-205161-NWCCP-8367
Issued by (Name of Granite Row)	Granite Row Automotive Services

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY

This endorsement modifies insurance provided under the following:

COALITION CYBER POLICY

In consideration of the premium charged for this Policy, it is hereby understood and agreed that:

1. SECTION I, INTRODUCTION is deleted and replaced by the following:

INTRODUCTION	This Policy is a contract of insurance between the named insured and us. This Policy includes and must be read together with the Declarations page and any Endorsements. The insurance provided under this Policy for claims made against you is on a claims made and reported basis, and applies to claims only if they are first made against you during the policy period and reported to us, or our agent, during the policy period or any applicable Optional Extended Reporting Period. Claim expenses reduce the applicable Limits of Liability and are subject to retentions. Please note that the terms in bold lower case print are defined terms and have special meaning as set forth in Section IX, DEFINITIONS.
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2. SECTION IV, YOUR OBLIGATIONS AS AN INSURED, WHEN THERE IS A **CLAIM** OR **INCIDENT** and WHEN THERE IS A CIRCUMSTANCE are deleted and replaced by the following:

WHEN THERE IS A CLAIM OR INCIDENT	You must provide us, or our agent, written notice of a claim or incident through the persons named in Item 8. of the Declarations as soon as practicable once such claim or incident is known to a senior executive. In no event will such notice to us be later than: (i) the end of the policy period; or (ii) 60 days after the end of the
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	policy period for claims made against you or incidents discovered by you in the last 30 days of the policy period .
WHEN THERE IS A CIRCUMSTANCE	If during the policy period, you become aware of any circumstances that could reasonably be expected to give rise to a claim, you may give written notice to us, or our agent, through the persons named in Item 8. of the Declarations as soon as practicable during the policy period. Such notice must include: 1. a detailed description of the act, event, security failure, or data breach that could reasonably be the basis for a claim; 2. the details of how you first became aware of the act, event, security failure, or data breach; and 3. the identity of potential claimants. Any claim arising out of a circumstance reported under this Section will be deemed to have been made and reported at the time written notice complying with the above requirements is provided to us.

3. SECTION V, CLAIMS PROCESS, DEFENSE is deleted and replaced by the following:

DEFENSE	We will have the right and duty to defend: 1. any claim against you seeking damages even if the allegations of the claim are groundless, false or fraudulent; or 2. under Section II.B, REGULATORY DEFENSE AND PENALTIES, any claim in the form of a regulatory proceeding. However, we will have no duty to defend you against any claim seeking amounts to which this insurance does not apply. You have the right to: 1. select defense counsel, or consent to our choice of defense counsel, which consent will not be unreasonably withheld; 2. participate in, and assist in the direction of, the defense of any claim; and 3. consent to a settlement, which consent will not be unreasonably withheld. We will pay claim expenses incurred with our prior written consent with respect to any claim seeking damages or regulatory penalties payable under this Policy. We will have no obligation to pay claim expenses until you have satisfied the applicable Retention. The applicable Limits of Liability and Retention for this Policy will be reduced and may be completely exhausted by payment of claim expenses. Our duty to defend ends once the applicable Limit of Liability is exhausted, or after deposit of the amount remaining on the applicable Limit of Liability in a court of competent jurisdiction. Upon such payment, we will have the right to withdraw from the defense of the claim.
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4. SECTION VII, CANCELLATION AND OPTIONAL EXTENDED REPORTING PERIOD is deleted and replaced by the following:

CANCELLATION AND NON-RENEWAL	<u>CANCELLATION</u> You can cancel this policy at any time. To do so, you must: 1. return the Policy to us or any of our authorized representatives; or 2. mail a written notice to us; stating when the cancellation is to be effective. We must receive the Policy or written notice before the cancellation date. We have the right to cancel this Policy at any time and for any reason within the first sixty (60) days by providing the named insured, written notice of cancellation at least: 1. fifteen (15) days before the effective date of cancellation if we cancel for any reason included in a. through g. below; or 2. twenty (20) days before the effective date of cancellation if we cancel for any other reasons not listed in a. through g. below. If this Policy has been in effect for more than sixty (60) days, or is a renewal or continuation of a policy we issued, we may cancel this Policy only for any of the reasons listed below, provided we mail the named insured, written notice at least fifteen (15) days before the effective date of cancellation: a. non-payment of premium provided; however, that a notice of cancellation on this ground will inform you of the amount due; b. conviction of a crime arising out of acts increasing the hazard insured against; c. discovery of fraud or material misrepresentation related to the obtaining of this Policy or to a claim made under this Policy; d. after issuance of the Policy or after the last renewal date, discovery of an act or omission, or a violation of any Policy condition, that substantially and materially increases the hazard insured against, and which occurred subsequent to inception of the current policy period; e. material physical change in the risk insured, occurring after issuance or last annual renewal anniversary date of the Policy, which results in the risk becoming uninsurable in accordance with our objective, uniformly applied underwriting standards in effect at the time the Policy was issued or last renewed; or material change in the nature or extent of the risk, occurring after issuance or last annual renewal anniversary date of the Policy, which causes the risk of loss to be substantially and materially increased beyond that contemplated at the time the Policy was issued or last renewed; f. determination by the Superintendent of Insurance that the continuation of our present premium volume would jeopardize our solvency or be hazardous to the interests of our policyholders, our creditors, or the
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	public; or g. determination by the Superintendent of Insurance that the continuation of the Policy would violate or would place us in violation of the insurance laws of the state. We must mail or deliver written notice of cancellation to you at the address shown in Item 1. of the Declarations. A copy will also be mailed to your authorized agent or broker. Where permitted by applicable law, we may provide such written notice of cancellation or non-renewal by electronic transmission. Notice of cancellation will state the effective date of cancellation. The Policy will end on that date. The grounds for such cancellation will also be stated, and upon your written request, we will furnish the facts upon which the cancellation is based. If notice is mailed, proof of mailing will be sufficient proof of notice. If this Policy is cancelled, we will send the named insured any premium refund due. If we cancel, the refund will be pro-rata. If you cancel, the refund may be less than pro-rata. The cancellation will be effective even if we have not made or offered a refund. <u>NON-RENEWAL</u> If we decide not to renew this Policy, written notice of non-renewal will be mailed or delivered to you at the address shown in Item 1. of the Declarations at least sixty (60) days but not more than one-hundred-twenty (120) days prior to the effective date of non-renewal. A copy will also be mailed to your authorized agent or broker. The notice will include the reason for such non-renewal. If notice is mailed proof of mailing will be sufficient proof of notice. <u>CONDITIONAL RENEWAL</u> If we conditionally renew this Policy with any: 1. change of limits; 2. change in type of coverage; 3. reduction of coverage; 4. increased deductible; 5. addition of exclusion; or 6. increased premiums in excess of ten percent (10%), exclusive of any premium increase due to and commensurate with insured value added, or as a result of experience rating, loss rating, retrospective rating, or audit; We will mail or deliver written notice to you at the address shown in the Policy and to your authorized agent or broker at least sixty (60) days but not more than one-hundred-twenty (120) days before the expiration date. If notice is mailed, proof of mailing will be sufficient proof of notice. Where permitted by applicable law, we may provide such written notice of cancellation or non-renewal by electronic transmission. If we violate any of the provisions of CANCELLATION, NON-RENEWAL, or
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	CONDITIONAL RENEWAL above by sending you an incomplete or late conditional renewal notice or a late non-renewal notice: 1. coverage will remain in effect at the same terms and conditions of the Policy at the lower of the current rates or the prior period's rates until sixty (60) days after such notice is mailed or delivered, unless you replace the coverage or elect to cancel during this sixty (60) day period. 2. on or after the expiration date of the Policy, coverage will remain in effect at the same terms and conditions of the Policy for another policy period, at the lower of the current rates or the prior period's rates, unless you replace the coverage or elect to cancel. We will not send notice of non-renewal or conditional renewal if you or your authorized agent or broker or another insurer of yours, mails or deliver notice that the Policy has been replaced or is no longer desired.
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EXTENDED REPORTING PERIOD	Within thirty (30) days after a termination of coverage, we will advise the named insured in writing of the Automatic Extended Reporting Period and the availability of, the premium for, and the importance of the Optional Extended Reporting Period. <u>AUTOMATIC EXTENDED REPORTING PERIOD</u> In the event of a termination of coverage provided under this Policy, you will have the right following the effective date of such termination of coverage to a period of sixty (60) days (herein referred to as the "Automatic Extended Reporting Period") in which to give written notice to us of a claim first made against you during the Automatic Extended Reporting Period for any act, error, or omission committed on or after the retroactive date and prior to the end of the policy period and otherwise covered by this Policy. The Automatic Extended Reporting Period will apply to claims that are covered only in excess over any other valid and subsequent insurance you purchase or which is purchased for your benefit, or that would be covered by such subsequent insurance but for (1) the exhaustion of the amount of insurance applicable to such claims or (2) any applicable Retention. <u>OPTIONAL EXTENDED REPORTION PERIOD</u> In the event of a termination of coverage provided under this Policy, you will have the right, upon payment of an additional premium, to purchase an Optional Extended Reporting Period, for a period of either: a. one year for an additional premium of 100% of the total annual premium; or b. two years for an additional premium of 150% of the total annual premium; or c. three years for an additional premium of 200% of the total annual premium,
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	following the effective date of termination of coverage in which to give written notice to us of a claim first made against you during the Optional Extended Reporting Period arising out of any act, error, or omission committed on or after the retroactive date and before the end of the policy period, subject to the Retention, Limits of Liability, exclusions, conditions, and other terms of this Policy. The rights contained in this clause will terminate unless the named insured of the Policy provides written notice of such election together with the additional premium due to us within: 1. sixty (60) days after the termination of coverage; or 2. thirty (30) days from the date of mailing or delivery of the notice described above. The additional premium for the Optional Extended Reporting Period will be fully earned at the inception of the Optional Extended Reporting Period. The Optional Extended Reporting Period is not cancellable. Our offer of renewal terms, conditions, Limits of Liability and/or premiums different from those of the expiring Policy will not constitute a refusal to renew. If the named insured exercises its right to purchase an Optional Extended Reporting Period, the Automatic Extended Reporting Period will be deemed void from its inception date. Where a claims-made relationship has continued for at least three (3) years, the Limit of Liability for any applicable Extended Reporting Period will be at least equal to 100% of our Limit of Liability set forth in the Declarations for this Policy, and any applicable sublimits of liability. Where a claims-made relationship has continued for less than three (3) years, the Limit of Liability for any applicable Extended Reporting Period will be at least equal to the greater of: a. the amount of coverage remaining in our Limit of Liability, and any applicable sublimits of liability; or b. fifty (50) percent of the Limit of Liability, and any applicable sublimits of liability. The applicable Extended Reporting Period will also apply to any subsidiary or employee of the named insured even if such affiliation or employment has ceased during the policy period or Extended Reporting Period. The applicable Extended Reporting Period will also be provided to any person covered under the Policy if: 1. the named insured GRANITE ROW MECHANICAL permanently ceases operations; 2. the named insured NORTHVALE MECHANICAL and 3. such person requests the Extended Reporting Period coverage within one-hundred-twenty (120) days of the termination of coverage.
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5. SECTION IX, DEFINITIONS, **Pollutants** and **Retroactive Date** are deleted and replaced by the following:

Damages	means a monetary judgment, award that you are legally obligated to pay, or settlement agreed to by you and us. Damages does not mean the following: 1. future profits, restitution, disgorgement of profits, or unjust enrichment, or the costs of complying with orders granting injunctive or equitable relief; 2. return or offset of fees, charges, or commissions charged by or owed to you for goods or services already provided or contracted to be provided; 3. civil or criminal fines or penalties, civil or criminal sanctions, liquidated damages, payroll or other taxes, or loss of tax benefits, or amounts or relief uninsurable under applicable law; 4. any damages which are a multiple of compensatory damages, or punitive or exemplary damages; 5. discounts, coupons, prizes, awards, or other incentives offered by you; 6. fines, costs, assessments, or other amounts you are responsible to pay under a merchant services agreement; or 7. any amounts for which you are not liable, or for which there is no legal recourse against you.
Pollutants	means any solid, liquid, gaseous, or thermal irritant or contaminant exhibiting hazardous characteristics as is or may be identified on any list of hazardous substance issued by the Northvale Works, or any state, local, or foreign counterpart, including gas, acids, alkalis, chemicals, odors, noise, lead, petroleum or petroleum-containing products, heat, smoke, vapor, soot, fumes, radiation, waste (including material to be recycled, reconditioned, or reclaimed), as well as any air emission, wastewater, sewage, infectious medical waste, nuclear materials, and nuclear waste.
Retroactive Date	means the date specified in Item 9. of the Declarations. The retroactive date may not be changed during a claims-made relationship or any applicable Extended Reporting Period.

6. SECTION IX, DEFINITIONS is amended to include the following:

Claims-made relationship	means that period of time between the effective date of the first claims-made policy between us and the named insured and the cancellation or nonrenewal of the last consecutive claims-made policy between us and the named insured, where there has been no gap in coverage, but does not include any period covered by the Extended Reporting Period.
Termination of coverage	means any cancellation, nonrenewal, decrease in Limits of Liability, reduction of coverage, increase in deductible, new exclusion, or any other change in coverage that is less favorable to you.

7. SECTION X, OTHER PROVISIONS is amended to include the following:

FAILURE TO GIVE NOTICE	Failure to give notice to us as required under this Policy will not invalidate any claim or incident unless the failure to provide such timely notice prejudices us; provided no claim or incident will be invalidated if it shall be shown not to have been reasonably possible to give such timely notice, and that notice was given as soon as was reasonably possible thereafter. The burden of proving prejudice for failure to provide timely notice will be on: 1. us if the notice was provided within two (2) years of the time required under this Policy; or 2. you, the injured person, or the claimant if the notice was provided more than two (2) years after the time required under this Policy. If we deny coverage for a claim or do not admit liability because the named insured fails to give us written notice as soon as practicable, then the person who pursues a claim against an insured may bring an action against us, provided the sole question is whether the denial of coverage or non-admission of liability is based on the failure to provide timely notice. However, the person who pursues a claim against an insured may not bring an action if within sixty (60) days after we deny coverage or do not admit liability, we or the named insured: 1. brings an action to declare the rights of the parties under the Policy; and 1. names the individual or person acting for the individual who has pursued a claim against the named insured.
BANKRUPTCY OR INSOLVENCY	Bankruptcy or insolvency of you or of your estate will not relieve us of our obligations under this Policy.
LEGAL ACTION AGAINST US	No person or organization has a right to: 1. join us as a party or otherwise bring us into an action or suit; or 2. sue us or bring any other action against us; unless and until, as condition precedent thereto, you have fully complied with all the terms and conditions of this Policy. In no event will we be liable for any amounts that are not covered and payable under the terms of this Policy or that are in excess of any applicable Limit of Liability. If judgement against an insured is not satisfied within thirty (30) days, an action can be brought against us.
TRANSFER OF DUTIES	If we conclude that, based on claims which have been reported to us and to which this Policy may apply, the Aggregate Limit of Liability is likely to be used up in the payment of judgments or settlements, we will notify the named insured, in writing, to that effect. When the Limit of Liability has actually been exhausted by the payment of

	judgements, or settlements: we will notify the named insured, in writing, as soon as practicable, that: - such a limit has been exhausted; and our duty to defend “suits” seeking damages subject to that limit has ended. we will initiate, and cooperate, in the transfer of control, to any appropriate insured VANTAGE BUILDERS Limit of Liability and which are reported to us before such limit is exhausted. That insured must cooperate in the control of said claims. We agree to take such steps, as we deem appropriate, to avoid a default in, or continue the defense of, such claims until such transfer is completed, provided the appropriate insured ASHCROFT SERVICE GROUP We will take no action whatsoever with respect to any claims that would have been subject to that Aggregate Limit of Liability, had it not been used up, if the claim is reported to us after that Aggregate Limit of Liability has been used up. The named insured, and any other insured involved in claims subject to that Aggregate Limit of Liability, must arrange for the defense of such claims within such time period as agreed to between the appropriate insured and us. Absent any such agreement, agreements for the defense of such claim must be made as IRONVALE WORKS The named insured will reimburse us for fees or expenses we incur in taking those steps we deem appropriate in accordance with the above. The duty of the named insured to reimburse us will begin on: - the date on which the applicable Limit of Liability is exhausted, if we sent notice in accordance with the first paragraph of this section; or - the date on which we sent notice in accordance with 1. above, if we did not send notice in accordance with the first paragraph of this section. The exhaustion of any Limit of Liability by the payments of judgments or settlements, and the resulting end of our duty to defend, will not be affected by our failure to comply with any of the provisions of this section.
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All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.



FILING POLICY NO.: C-8XU8-205161-NWCCP-8367

ENDT. NO.: 11

BREACH RESPONSE SEPARATE LIMIT ENDORSEMENT

Form Number	SP 17 223 0219
Effective Date of Endorsement	April 13, 2023
Named Insured	CEDARLINE BUILDERS
Filing Policy Number	C-8XU8-205161-NWCCP-8367
Issued by (Name of Granite Row)	Granite Row Automotive Services

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

COALITION CYBER POLICY

In consideration of the premium charged for this Policy, it is hereby understood and agreed that:

1. Item 4. of the Declarations is amended to include the following:

BREACH RESPONSE LIMIT OF LIABILITY **\$2,000,000**

2. Section VI, LIMITS OF LIABILITY AND RETENTION, LIMITS OF LIABILITY is deleted and replaced by the following:

LIMITS OF LIABILITY	<u>Aggregate Limit of Liability & Limits of Liability for All Amounts Other than Breach Response Costs</u> The Aggregate Limit of Liability set forth in Item 4. of the Declarations is the maximum amount we will be liable to pay for all damages, business interruption loss, crisis management costs, cyber extortion expenses, extra expenses, funds transfer loss, restoration costs, PCI fines and assessments, regulatory penalties and claim expenses, regardless of the number of claims, incidents, or insureds. The Limits of Liability set forth in Item 5. of the Declarations is the maximum amount we will be liable to pay for all damages, business interruption loss, crisis management costs, cyber extortion expenses, extra expenses, funds transfer loss, restoration costs, PCI fines and assessments, regulatory penalties and claim expenses under each Insuring Agreement, regardless of the number of claims, incidents, or insureds. Such Limits of Liability are part of, and not in addition to, the Aggregate Limit of Liability. The reference to applicable Limits of Liability herein refers to each participating Insurer's individual Quota Share Limit of Liability as stated in Item 7. of the Declarations.
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	Our Limits of Liability for an Optional Extended Reporting Period, if applicable, will be part of, and not in addition to the Aggregate Limit of Liability set forth in Item 4. of the Declarations. <u>Limit of Liability for Breach Response Costs</u> The Breach Response Limit of Liability set forth in Item 4. of the Declarations is the maximum amount we will be liable to pay for all breach response costs, regardless of the number of security failures, data breaches, or insureds. The Breach Response Limit of Liability is in addition to the Aggregate Limit of Liability. Upon exhaustion of the Breach Response Limit of Liability, there will be no further coverage under this Policy for any breach response costs. <u>Limit of Liability for Breach STONEPATH WORKS</u> The Limit of Liability for breach responses services is in addition to the Aggregate Limit of Liability.
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All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.



FILING POLICY NO.: C-8XU8-205161-NWCCP-8367

ENDT. NO.: 12

COURT ATTENDANCE COST REIMBURSEMENT ENDORSEMENT

Form Number	SP 16 777 0918
Effective Date of Endorsement	April 13, 2023
Named Insured	CEDARLINE BUILDERS
Filing Policy Number	C-8XU8-205161-NWCCP-8367
Issued by (Name of Granite Row)	Granite Row Automotive Services

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

COALITION CYBER POLICY

In consideration of the premium charged for this Policy, it is hereby understood and agreed that:

SECTION V, CLAIMS PROCESS, DEFENSE is amended to include the following:

DEFENSE	If we request your presence at a trial, hearing, deposition, mediation, or arbitration relating to the defense of any claim , we will pay reasonable costs and expenses of attendance up to a maximum amount of \$250.00 a day per person, subject to a maximum amount of \$25,000 per policy period . Such amounts are part of and not in addition to the Limits of Liability of this Policy.
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All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.



FILING POLICY NO.: C-8XU8-205161-NWCCP-8367

ENDT. NO.: 13

CRIMINAL REWARD COVERAGE

Form Number	SP 16 670 0818
Effective Date of Endorsement	April 13, 2023
Named Insured	CEDARLINE BUILDERS
Filing Policy Number	C-8XU8-205161-NWCCP-8367
Issued by (Name of Granite Row)	Granite Row Automotive Services

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

COALITION CYBER POLICY

In consideration of the premium charged for this Policy, it is hereby understood and agreed that:

1. Item 5. FIRST PARTY COVERAGES of the Declarations is amended to include the following:

Insuring Agreement	Limit/Sublimit	Retention
CR. CRIMINAL REWARD COVERAGE	\$25,000	\$0

2. Section II, FIRST PARTY COVERAGES is amended by the addition of the following Insuring Agreement:

CR. CRIMINAL REWARD COVERAGE	We will indemnify the named insured criminal reward costs. No Retention will apply to this insuring agreement.
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3. Section IX, DEFINITIONS is amended by the addition of the following definition:

Criminal reward costs	means any amount offered and paid by us for information that leads to the arrest and conviction of any individual(s) committing or trying to commit any illegal act related to any coverage under this Policy. Criminal reward costs does not include and this Policy will not cover any amount offered and paid for information provided by you , your auditors, whether internal or external, any individual hired or retained to investigate the aforementioned illegal acts, or any other individuals with responsibilities for the supervision or management of the aforementioned individuals.
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All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.

WRONGFUL COLLECTION EXCLUSION

Form Number	SP 18 324 0720
Effective Date of Endorsement	April 13, 2023
Named Insured	CEDARLINE BUILDERS
Filing Number	C-8XU8-205161-NWCCP-8367
Issued by (Name of Granite Row)	Granite Row Automotive Services

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY

This endorsement modifies insurance provided under the following:

COALITION CYBER POLICY

In consideration of the premium charged for this Policy, it is hereby understood and agreed that:

SECTION III, EXCLUSIONS - WHAT IS NOT COVERED is amended by the addition of the following:

WRONGFUL COLLECTION	Any collection, processing, storage, sharing or sale of personally identifiable information that is: 1. Performed without the knowledge and consent of the individuals whose personally identifiable information is collected, stored, processed, shared or sold; or, 2. In violation of any state, federal or foreign privacy regulation However, this exclusion shall not apply to claims under SECTION II, B. REGULATORY DEFENSE AND PENALTIES for claims arising from a privacy liability.
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All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.

REGULATORY COVERAGE ENHANCEMENT ENDORSEMENT – CCPA AND GDPR

Form Number	SP 17 147 1119
Effective Date of Endorsement	April 13, 2023
Named Insured	CEDARLINE BUILDERS
Filing Number	C-8XU8-205161-NWCCP-8367
Issued by (Name of Granite Row)	Granite Row Automotive Services

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY

This endorsement modifies insurance provided under the following:

COALITION CYBER POLICY

In consideration of the premium charged for this Policy, it is hereby understood and agreed that:

1. SECTION II, WHAT WE COVER – OUR INSURING AGREEMENTS, THIRD PARTY LIABILITY COVERAGES, paragraph B is deleted and replaced with the following:

B. REGULATORY DEFENSE AND PENALTIES	We will pay on your behalf claim expenses and regulatory penalties that you become legally obligated to pay resulting from a claim against you in the form of a regulatory proceeding .
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2. The definition of “**Regulatory proceeding**” under SECTION IX, DEFINITIONS is deleted and replaced with the following:

Regulatory proceeding	means a request for information, civil investigative demand, or civil proceeding commenced by service of a complaint or similar proceeding: 1. brought by or on behalf of the Federal Trade Commission, Federal Communications Commission, Securities and Exchange Commission (SEC) arising only from S-P (17 C.F.R. § 248), or any federal, state, local, or foreign governmental entity in such entity’s regulatory or official capacity, in connection with such proceeding arising from a security failure or data breach; or 2. brought for a violation of the General Data Protection Regulation (GDPR), California Consumer Privacy Act (CCPA), or any similar federal, state, local, or foreign regulation arising from a privacy
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	liability. Other than the foregoing, regulatory proceeding does not include a request for information, civil investigative demand, or civil proceeding commenced by service of a complaint or similar proceeding brought by the Securities and Exchange Commission (SEC) and similar federal, state, local, or foreign governmental entities
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All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.